

ARTICLE: 1

TITLE:

Name and Territory of the Union

LAW:

Constitution of India

TEXT:

Article 1.

- (1) India, that is Bharat, shall be a Union of States.
- (2) The States and the territories thereof shall be as specified in the First Schedule.
- (3) The territory of India shall comprise—
 - (a) the territories of the States;
 - (b) the Union territories specified in the First Schedule; and
 - (c) such other territories as may be acquired.

SUMMARY:

Article 1 establishes India's constitutional identity. It declares that India, also known as Bharat, is a Union of States. It defines the territorial composition of India and forms the constitutional basis of the country's federal structure.

KEY POINTS:

- India is officially known as India, that is Bharat.
- India is a Union of States.
- Defines the territory of India.
- Includes States, Union Territories and acquired territories.
- Forms the constitutional foundation of India.

IMPORTANT TERMS:

India

Bharat

Union of States

Territory of India

First Schedule

Union Territory

LANDMARK CASES:

Berubari Union Case (1960)

- Explained constitutional provisions relating to India's territory.

RELATED ARTICLES:

Article 2

Article 3

Article 4

EXAM NOTES:

Article 1 is the first Article of the Constitution.

India is called a Union of States, not a Federation of States.

MEMORY TRICK:

India = Bharat = Union of States

FAQ:

Q. Why is India called a Union of States?

A. Because the Constitution creates an indestructible Union where States cannot secede.

Q. What does Article 1 define?

A. It defines the name and territory of India.

MCQ 1:

Question:

According to Article 1, India is a _____.

Options:

A. Federation

B. Confederation

C. Union of States

D. Republic

Answer:

C

MCQ 2:

Question:

Which Schedule contains the names of States?

Options:

A. Second Schedule

B. Third Schedule

C. First Schedule

D. Seventh Schedule

Answer:

C

SOURCE:

Constitution of India

Article 1

ARTICLE: 2

TITLE:

Admission or Establishment of New States

LAW:

Constitution of India

TEXT:

Article 2.

Parliament may by law admit into the Union, or establish, new States on such terms and conditions as it thinks fit.

SUMMARY:

Article 2 empowers the Parliament of India to admit new territories into the Union or establish new States. This provision enables India to expand its territory or incorporate new regions through legislation. The power is exclusively vested in Parliament.

KEY POINTS:

- Parliament has the power to admit new States.
- Parliament may establish new States.
- The admission or establishment is done through law.

- Parliament determines the terms and conditions.
- Applies to territories becoming part of India after the Constitution came into force.

IMPORTANT TERMS:

Parliament

New States

Union of India

Admission

Establishment

Legislation

LANDMARK CASES:

No major landmark judgment directly interpreting Article 2.

RELATED ARTICLES:

Article 1

Article 3

Article 4

EXAM NOTES:

Article 2 deals with the admission or establishment of new States.

Article 3 deals with the reorganization of existing States.

Remember the distinction between Article 2 and Article 3.

MEMORY TRICK:

Article 2 = Add New State

Article 3 = Change Existing State

FAQ:

Q. Who has the power to admit a new State into India?

A. Parliament.

Q. Can Parliament establish a new State under Article 2?

A. Yes.

Q. Does Article 2 deal with changing existing State boundaries?

A. No. That is covered under Article 3.

MCQ 1:

Question:

Who has the power to admit a new State into the Union of India?

Options:

A. President

B. Supreme Court

C. Parliament

D. Governor

Answer:

C

MCQ 2:

Question:

Article 2 mainly deals with:

Options:

- A. Fundamental Rights
- B. Admission or establishment of new States
- C. State Emergency
- D. Elections

Answer:

B

SOURCE:

Constitution of India

Article 2

ARTICLE: 3

TITLE:

Formation of New States and Alteration of Areas, Boundaries or Names of Existing States

LAW:

Constitution of India

TEXT:

Article 3.

Parliament may by law—

(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;

(b) increase the area of any State;

(c) diminish the area of any State;

(d) alter the boundaries of any State;

(e) alter the name of any State.

Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal affects the area, boundaries or name of any State, the Bill has been referred by the President to the Legislature of that State for expressing its views within such period as may be specified.

SUMMARY:

Article 3 empowers Parliament to create new States and to alter the area, boundaries, or names of existing States. Before introducing such a Bill, the President must recommend it, and if the proposal affects a State, the concerned State Legislature is given an opportunity to express its views. However, Parliament is not bound by those views.

KEY POINTS:

- Parliament has the exclusive power to reorganize States.
- New States can be created by dividing or merging territories.
- Parliament can increase or decrease the area of a State.
- Parliament can alter State boundaries.
- Parliament can change the name of a State.
- President's recommendation is mandatory before introducing the Bill.
- State Legislature's opinion is advisory and not binding.

IMPORTANT TERMS:

Parliament

President

State Legislature

Boundary

Area

New State

State Reorganization

LANDMARK CASES:

Babulal Parate v. State of Bombay (1960)

- The Supreme Court held that Parliament has wide powers under Article 3 regarding State reorganization.

Mangal Singh v. Union of India (1967)

- Confirmed Parliament's authority to reorganize States under Article 3.

RELATED ARTICLES:

Article 1

Article 2

Article 4

EXAM NOTES:

- Parliament has the final authority under Article 3.
- The consent of the affected State Legislature is NOT mandatory.
- The State Legislature only expresses its views.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 3 = "5 Powers"

Remember:

Create

Increase

Decrease

Boundary

Name

(CIDBN)

FAQ:

Q. Who has the power to create a new State?

A. Parliament.

Q. Is the consent of the State Legislature compulsory?

A. No. The Legislature only gives its views, which are not binding on Parliament.

Q. Can Parliament rename a State?

A. Yes, under Article 3.

MCQ 1:

Question:

Under Article 3, who has the power to alter the boundaries of a State?

Options:

- A. President
- B. Supreme Court
- C. Parliament
- D. Governor

Answer:

C

MCQ 2:

Question:

Before a Bill under Article 3 is introduced in Parliament, whose recommendation is mandatory?

Options:

- A. Prime Minister
- B. President
- C. Chief Justice of India
- D. Governor

Answer:

B

SOURCE:

Constitution of India

Article 3

ARTICLE: 4

TITLE:

Laws Made Under Articles 2 and 3 to Provide for the Amendment of the First and Fourth Schedules and Supplemental, Incidental and Consequential Matters

LAW:

Constitution of India

TEXT:

Article 4.

(1) Any law referred to in Article 2 or Article 3 shall contain such provisions for the amendment of the First Schedule and the Fourth Schedule as may be necessary to give effect to the provisions of the law and may also contain such supplemental, incidental and consequential provisions as Parliament may deem necessary.

(2) No such law as aforesaid shall be deemed to be an amendment of this Constitution for the purposes of Article 368.

SUMMARY:

Article 4 provides that whenever Parliament makes a law under Article 2 or Article 3 regarding the admission, establishment, or reorganization of States, it may also amend the First Schedule and the Fourth Schedule to reflect those changes. Such amendments are not treated as Constitutional Amendments under Article 368 and therefore can be passed by a simple majority in Parliament.

KEY POINTS:

- Applies to laws made under Articles 2 and 3.
- Parliament can amend the First Schedule.
- Parliament can amend the Fourth Schedule.

- Parliament may include supplemental and consequential provisions.
- Such laws are not Constitutional Amendments.
- A simple majority is sufficient for passing these laws.

IMPORTANT TERMS:

Article 2

Article 3

Article 4

First Schedule

Fourth Schedule

Simple Majority

Constitutional Amendment

Article 368

LANDMARK CASES:

Mangal Singh v. Union of India (1967)

- The Supreme Court clarified Parliament's broad powers regarding State reorganization under Articles 2, 3, and 4.

Babulal Parate v. State of Bombay (1960)

- Recognized Parliament's authority to reorganize States and make necessary consequential changes.

RELATED ARTICLES:

Article 2

Article 3

Article 368

EXAM NOTES:

- Article 4 is an exception to the amendment procedure under Article 368.
- Amendments made under Article 4 require only a simple majority.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.
- Remember that the First Schedule contains the names of States and Union Territories, while the Fourth Schedule deals with the allocation of seats in the Rajya Sabha.

MEMORY TRICK:

Article 4 = "Simple Amendment"

Remember:

State Reorganization → Simple Majority

FAQ:

Q. Does Article 4 require a Constitutional Amendment under Article 368?

A. No. Laws made under Article 4 are not considered Constitutional Amendments.

Q. Which Schedules may be amended under Article 4?

A. The First Schedule and the Fourth Schedule.

Q. What majority is required to pass a law under Article 4?

A. A simple majority in Parliament.

MCQ 1:

Question:

Article 4 primarily deals with:

Options:

- A. Fundamental Rights
- B. State Emergency
- C. Consequential amendments following State reorganization
- D. Election of the President

Answer:

C

MCQ 2:

Question:

A law made under Article 4 is passed by:

Options:

- A. Special Majority under Article 368
- B. Two-thirds Majority
- C. Simple Majority
- D. Unanimous Vote

Answer:

C

SOURCE:

Constitution of India

Article 4

ARTICLE: 5

TITLE:

Citizenship at the Commencement of the Constitution

LAW:

Constitution of India

TEXT:

Article 5.

At the commencement of this Constitution, every person who has his domicile in the territory of India and—

(a) who was born in the territory of India; or

(b) either of whose parents was born in the territory of India; or

(c) who has been ordinarily resident in the territory of India for not less than five years immediately preceding such commencement,

shall be a citizen of India.

SUMMARY:

Article 5 lays down the rules for determining who became a citizen of India on 26 January 1950, the date on which the Constitution came into force. It applies only to citizenship at the commencement of the Constitution and not to citizenship acquired after that date.

KEY POINTS:

- Determines citizenship on 26 January 1950.

- A person must have a domicile in India.
- Citizenship is granted if the person fulfills any one of the prescribed conditions.
- Birth in India is one qualifying condition.
- Birth of either parent in India is another qualifying condition.
- Ordinary residence in India for at least five years before the commencement of the Constitution also qualifies.
- Applies only at the commencement of the Constitution.

IMPORTANT TERMS:

Citizenship

Domicile

Commencement of Constitution

Ordinary Residence

Birth

Parents

Territory of India

LANDMARK CASES:

Pradeep Jain v. Union of India (1984)

- The Supreme Court explained the concept of domicile in the Indian constitutional context.

Central Bank of India v. Ram Narain (1955)

- Discussed the legal meaning and importance of domicile.

RELATED ARTICLES:

Article 6

Article 7

Article 8

Article 9

Article 10

Article 11

EXAM NOTES:

- Article 5 deals only with citizenship on 26 January 1950.
- Domicile is an essential requirement.
- It does not govern present-day citizenship.
- Current citizenship is primarily governed by the Citizenship Act, 1955.

MEMORY TRICK:

Article 5 = "Domicile + Birth + Parents + 5 Years"

Remember:

D + B + P + 5 = Citizenship

FAQ:

Q. What is the main purpose of Article 5?

A. It determines who became an Indian citizen when the Constitution came into force.

Q. Is domicile necessary under Article 5?

A. Yes. Every person must have a domicile in India.

Q. Does Article 5 apply to citizenship acquired today?

A. No. Present-day citizenship is governed mainly by the Citizenship Act, 1955.

MCQ 1:

Question:

Article 5 deals with:

Options:

- A. Fundamental Rights
- B. Citizenship at the commencement of the Constitution
- C. Election of the President
- D. State Reorganization

Answer:

B

MCQ 2:

Question:

Which of the following is an essential requirement under Article 5?

Options:

- A. Voting Rights
- B. Domicile in India
- C. Property Ownership
- D. Government Employment

Answer:

B

SOURCE:

Constitution of India

Article 5

ARTICLE: 6

TITLE:

Rights of Citizenship of Certain Persons Who Have Migrated to India from Pakistan

LAW:

Constitution of India

TEXT:

Article 6.

Notwithstanding anything in Article 5, a person who has migrated to the territory of India from the territory now included in Pakistan shall be deemed to be a citizen of India at the commencement of this Constitution if—

(a) he or either of his parents or any of his grandparents was born in India as defined in the Government of India Act, 1935; and

(b) in the case where such person migrated before the nineteenth day of July, 1948, he has been ordinarily resident in the territory of India since the date of his migration; or

(c) in the case where such person migrated on or after the nineteenth day of July, 1948, he has been registered as a citizen of India by an officer appointed by the Government of the Dominion of India on an application made by him, provided that no person shall be so registered unless he has been resident in India for at least six months immediately preceding the date of his application.

SUMMARY:

Article 6 grants Indian citizenship to certain persons who migrated from Pakistan to India during the Partition of 1947. It lays down different conditions depending on whether the migration occurred before or after 19 July 1948. The provision was intended to address the unique circumstances arising from the Partition.

KEY POINTS:

- Applies to persons who migrated from Pakistan to India.
- Overrides Article 5 where applicable.
- Covers citizenship at the commencement of the Constitution.
- Different rules apply before and after 19 July 1948.
- Registration is required for migrants arriving on or after 19 July 1948.
- At least one parent or grandparent must have been born in undivided India as defined under the Government of India Act, 1935.

IMPORTANT TERMS:

Citizenship

Migration

Pakistan

Partition of India

Registration

Ordinary Residence

Domicile

Government of India Act, 1935

LANDMARK CASES:

State of Bihar v. Kumar Amar Singh (1955)

- The Supreme Court discussed constitutional provisions relating to citizenship after Partition.

Izhar Ahmad Khan v. Union of India (1962)

- Clarified issues concerning migration and citizenship under Articles 5 to 11.

RELATED ARTICLES:

Article 5

Article 7

Article 8

Article 9

Article 10

Article 11

EXAM NOTES:

- Article 6 deals exclusively with migration from Pakistan to India.
- Remember the important date: ****19 July 1948****.
- Migration before and after this date is treated differently.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 6 = Pakistan → India

Remember:

Before 19 July 1948 → Residence

After 19 July 1948 → Registration

FAQ:

Q. Who does Article 6 apply to?

A. Persons who migrated from Pakistan to India during Partition.

Q. Why is 19 July 1948 important?

A. It determines whether registration is required for citizenship.

Q. Does Article 6 still determine citizenship today?

A. No. It applied only at the commencement of the Constitution. Current citizenship matters are governed primarily by the Citizenship Act, 1955.

MCQ 1:

Question:

Article 6 primarily deals with:

Options:

- A. Fundamental Rights
- B. Citizenship of migrants from Pakistan
- C. State Reorganization
- D. Emergency Provisions

Answer:

B

MCQ 2:

Question:

For migrants arriving on or after 19 July 1948, Article 6 requires:

Options:

- A. Presidential Approval
- B. Registration as a Citizen
- C. Supreme Court Permission
- D. Parliamentary Resolution

Answer:

B

SOURCE:

Constitution of India

Article 6

ARTICLE: 7

TITLE:

Rights of Citizenship of Certain Migrants to Pakistan

LAW:

Constitution of India

TEXT:

Article 7.

Notwithstanding anything in Articles 5 and 6, a person who has after the first day of March, 1947, migrated from the territory of India to the territory now included in Pakistan shall not be deemed to be a citizen of India.

Provided that nothing in this Article shall apply to a person who, after having so migrated to the territory now included in Pakistan, has returned to the territory of India under a permit for resettlement or permanent return issued by or under the authority of any law, and every such person shall, for the purposes of clause (b) of Article 6, be deemed to have migrated to the territory of India after the nineteenth day of July, 1948.

SUMMARY:

Article 7 deals with persons who migrated from India to Pakistan after 1 March 1947 during the Partition. Such persons were generally not considered Indian citizens at the commencement of the Constitution. However, if they later returned to India with a valid permit for permanent resettlement or permanent return, they could become Indian citizens under the conditions specified in Article 6.

KEY POINTS:

- Applies to persons who migrated from India to Pakistan.
- Covers migration after 1 March 1947.
- Such migrants are generally not considered Indian citizens.
- Exception exists for persons returning with a valid resettlement or permanent return permit.
- Returning migrants are treated as having migrated after 19 July 1948 under Article 6.
- Works as an exception to Articles 5 and 6.

IMPORTANT TERMS:

Migration

Pakistan

Partition

Permit for Resettlement

Permanent Return

Citizenship

Article 6

Article 7

LANDMARK CASES:

Izhar Ahmad Khan v. Union of India (1962)

- The Supreme Court interpreted Articles 5 to 11 and clarified citizenship issues arising from Partition.

Kulathil Mammu v. State of Kerala (1966)

- Discussed constitutional provisions relating to migration and citizenship.

RELATED ARTICLES:

Article 5

Article 6

Article 8

Article 9

Article 10

Article 11

EXAM NOTES:

- Remember the important date: 1 March 1947.
- Article 7 deals with migration from India to Pakistan.
- It is often considered the opposite of Article 6.
- A return permit is necessary for a migrant to regain eligibility for Indian citizenship.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 6 = Pakistan → India

Article 7 = India → Pakistan

Remember:

Left India → Not Citizen

Returned with Permit → Eligible Again

FAQ:

Q. Who does Article 7 apply to?

A. Persons who migrated from India to Pakistan after 1 March 1947.

Q. Can such persons become Indian citizens again?

A. Yes, if they returned to India with a valid permit for resettlement or permanent return and fulfilled the conditions under Article 6.

Q. Which Article is closely connected with Article 7?

A. Article 6.

MCQ 1:

Question:

Article 7 deals with persons who migrated:

Options:

A. From Pakistan to India

B. From India to Pakistan

C. Between Indian States

D. From India to Nepal

Answer:

B

MCQ 2:

Question:

A person returning from Pakistan may become eligible for Indian citizenship if he returns with:

Options:

A. Tourist Visa

B. Passport

C. Permit for Resettlement or Permanent Return

D. Aadhaar Card

Answer:

C

SOURCE:

Constitution of India

Article 7

ARTICLE: 8

TITLE:

Rights of Citizenship of Certain Persons of Indian Origin Residing Outside India

LAW:

Constitution of India

TEXT:

Article 8.

Notwithstanding anything in Article 5, any person who or either of whose parents or any of whose grandparents was born in India as defined in the Government of India Act, 1935, and who is ordinarily residing in any country outside India as so defined shall be deemed to be a citizen of India if he has been registered as a citizen of India by the diplomatic or consular representative of India in the country where he is residing on an application made by him in the prescribed form and manner.

SUMMARY:

Article 8 grants Indian citizenship to certain persons of Indian origin who were residing outside India at the commencement of the Constitution. To become an Indian citizen, such a person must register with an Indian diplomatic or consular representative in the country where they reside. This provision was intended to protect the citizenship rights of the Indian diaspora.

KEY POINTS:

- Applies to persons of Indian origin living outside India.
- Either the person, a parent, or a grandparent must have been born in India as defined under the Government of India Act, 1935.
- Registration with an Indian diplomatic or consular representative is mandatory.
- Applies to citizenship at the commencement of the Constitution.
- Protects the interests of Indians residing abroad.

IMPORTANT TERMS:

Indian Origin

Citizenship

Registration

Diplomatic Representative

Consular Representative

Indian Diaspora

Government of India Act, 1935

LANDMARK CASES:

Izhar Ahmad Khan v. Union of India (1962)

- Explained constitutional provisions relating to citizenship under Articles 5 to 11.

No major Supreme Court judgment specifically interprets Article 8 independently.

RELATED ARTICLES:

Article 5

Article 6

Article 7

Article 9

Article 10

Article 11

EXAM NOTES:

- Article 8 applies to Indians living outside India.
- Registration is compulsory.
- The registration is done through an Indian Embassy or Consulate.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 8 = Indians Abroad

Remember:

Living Abroad + Indian Origin + Registration = Citizenship

FAQ:

Q. Who does Article 8 apply to?

A. Persons of Indian origin residing outside India.

Q. Is registration compulsory under Article 8?

A. Yes. Registration with an Indian diplomatic or consular representative is mandatory.

Q. Where is registration done?

A. At the Indian Embassy or Consulate in the country of residence.

MCQ 1:

Question:

Article 8 deals with:

Options:

- A. Citizenship of migrants to Pakistan
- B. Citizenship of persons of Indian origin residing outside India
- C. Fundamental Rights
- D. State Reorganization

Answer:

B

MCQ 2:

Question:

Under Article 8, registration is made before:

Options:

- A. Governor
- B. President
- C. Indian Diplomatic or Consular Representative
- D. Supreme Court

Answer:

C

SOURCE:

Constitution of India

Article 8

ARTICLE: 9

TITLE:

Persons Voluntarily Acquiring Citizenship of a Foreign State Not to be Citizens

LAW:

Constitution of India

TEXT:

Article 9.

No person shall be a citizen of India by virtue of Article 5, or be deemed to be a citizen of India by virtue of Article 6 or Article 8, if he has voluntarily acquired the citizenship of any foreign State.

SUMMARY:

Article 9 provides that a person who voluntarily acquires the citizenship of a foreign country cannot continue to be an Indian citizen under Articles 5, 6, or 8. This reflects India's principle of not recognizing dual citizenship under the Constitution. Any person voluntarily accepting foreign citizenship loses the constitutional right to Indian citizenship, subject to the provisions of the Citizenship Act, 1955.

KEY POINTS:

- Voluntary acquisition of foreign citizenship results in loss of Indian citizenship.
- Applies to persons covered under Articles 5, 6, and 8.
- India does not recognize dual citizenship.
- Citizenship matters after the commencement of the Constitution are governed by the Citizenship Act, 1955.
- Overseas Citizenship of India (OCI) is not the same as full Indian citizenship.

IMPORTANT TERMS:

Foreign Citizenship

Indian Citizenship

Dual Citizenship

Voluntary Acquisition

Citizenship Act, 1955

OCI

NRI

LANDMARK CASES:

Izhar Ahmad Khan v. Union of India (1962)

- The Supreme Court discussed constitutional provisions relating to citizenship under Articles 5 to 11.

State of Uttar Pradesh v. Rehmatullah (1971)

- Examined issues concerning acquisition of foreign citizenship and its effect on Indian citizenship.

RELATED ARTICLES:

Article 5

Article 6

Article 8

Article 10

Article 11

EXAM NOTES:

- India does not permit dual citizenship.
- Voluntary acquisition of foreign citizenship leads to loss of Indian citizenship.
- OCI is not equivalent to Indian citizenship.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 9 = Foreign Citizenship = No Indian Citizenship

Remember:

Foreign Citizenship → Indian Citizenship Ends

FAQ:

Q. Does India allow dual citizenship?

A. No. India does not recognize dual citizenship.

Q. What happens if an Indian citizen voluntarily acquires foreign citizenship?

A. He or she ceases to be an Indian citizen under Article 9, subject to the Citizenship Act, 1955.

Q. Is OCI the same as Indian citizenship?

A. No. OCI provides certain benefits but does not grant full Indian citizenship.

MCQ 1:

Question:

Article 9 states that a person who voluntarily acquires the citizenship of a foreign country:

Options:

- A. Remains an Indian citizen
- B. Automatically becomes a Member of Parliament
- C. Cannot continue as an Indian citizen under Articles 5, 6, or 8
- D. Must seek approval from the President

Answer:

C

MCQ 2:

Question:

India follows which principle regarding citizenship?

Options:

- A. Dual Citizenship
- B. Triple Citizenship
- C. Single Citizenship
- D. Regional Citizenship

Answer:

C

SOURCE:

Constitution of India

Article 9

ARTICLE: 10

TITLE:

Continuance of the Rights of Citizenship

LAW:

Constitution of India

TEXT:

Article 10.

Every person who is or is deemed to be a citizen of India under any of the foregoing provisions of this Part shall, subject to the provisions of any law that may be made by Parliament, continue to be such citizen.

SUMMARY:

Article 10 ensures that every person who became an Indian citizen under Articles 5 to 9 shall continue to remain a citizen of India. However, this continuance is subject to any law made by Parliament. This Article gives Parliament the authority to regulate citizenship through legislation such as the Citizenship Act, 1955.

KEY POINTS:

- Guarantees the continuance of Indian citizenship.
- Applies to persons recognized as citizens under Articles 5 to 9.
- Citizenship continues unless altered by a law made by Parliament.
- Parliament has the power to regulate citizenship.
- Forms the constitutional basis for future citizenship laws.

IMPORTANT TERMS:

Indian Citizenship

Continuance

Parliament

Citizenship Act, 1955

Constitution

Citizenship Law

LANDMARK CASES:

Izhar Ahmad Khan v. Union of India (1962)

- The Supreme Court discussed Articles 5 to 11 and Parliament's power over citizenship.

State Trading Corporation of India Ltd. v. Commercial Tax Officer (1963)

- Clarified constitutional aspects relating to citizenship and legal persons.

RELATED ARTICLES:

Article 5

Article 6

Article 7

Article 8

Article 9

Article 11

EXAM NOTES:

- Article 10 protects the continuity of citizenship.
- Parliament has the authority to modify citizenship through legislation.
- The Citizenship Act, 1955 derives constitutional support from Articles 10 and 11.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.

MEMORY TRICK:

Article 10 = Continue as Citizen

Remember:

Citizen Today → Continue Tomorrow (subject to Parliament's law)

FAQ:

Q. What does Article 10 provide?

A. It guarantees the continuance of Indian citizenship subject to laws made by Parliament.

Q. Can Parliament change citizenship laws?

A. Yes. Article 10 makes citizenship subject to laws enacted by Parliament.

Q. Which Act mainly governs citizenship after the Constitution came into force?

A. The Citizenship Act, 1955.

MCQ 1:

Question:

Article 10 primarily deals with:

Options:

- A. Loss of Citizenship
- B. Continuance of Citizenship
- C. Fundamental Duties
- D. State Reorganization

Answer:

B

MCQ 2:

Question:

The continuance of citizenship under Article 10 is subject to:

Options:

- A. Orders of the Supreme Court
- B. Decisions of the President

C. Laws made by Parliament

D. Decisions of the Election Commission

Answer:

C

SOURCE:

Constitution of India

Article 10

ARTICLE: 11

TITLE:

Parliament to Regulate the Right of Citizenship by Law

LAW:

Constitution of India

TEXT:

Article 11.

Nothing in the foregoing provisions of this Part shall derogate from the power of Parliament to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

SUMMARY:

Article 11 empowers Parliament to make laws relating to citizenship. It gives Parliament the exclusive authority to regulate the acquisition, termination, renunciation, registration,

naturalization, and all other matters concerning citizenship. This Article forms the constitutional basis for the Citizenship Act, 1955.

KEY POINTS:

- Parliament has exclusive power to make citizenship laws.
- Covers acquisition of citizenship.
- Covers termination of citizenship.
- Covers renunciation of citizenship.
- Covers registration and naturalization.
- Forms the constitutional basis of the Citizenship Act, 1955.
- Articles 5 to 10 do not limit Parliament's legislative power regarding citizenship.

IMPORTANT TERMS:

Parliament

Citizenship

Acquisition

Termination

Naturalization

Registration

Renunciation

Citizenship Act, 1955

LANDMARK CASES:

Izhar Ahmad Khan v. Union of India (1962)

- The Supreme Court recognized Parliament's authority over citizenship matters under Article 11.

Sarbananda Sonowal v. Union of India (2005)

- Discussed citizenship, illegal migration, and Parliament's legislative powers under the Citizenship Act.

RELATED ARTICLES:

Article 5

Article 6

Article 7

Article 8

Article 9

Article 10

EXAM NOTES:

- Article 11 gives Parliament complete authority over citizenship.
- The Citizenship Act, 1955 was enacted under the powers granted by Article 11.
- Frequently asked in UPSC, Judiciary, CLAT, and State PCS examinations.
- Remember that Articles 5 to 10 determine citizenship at the commencement of the Constitution, whereas Article 11 empowers Parliament to regulate citizenship thereafter.

MEMORY TRICK:

Article 11 = Parliament Controls Citizenship

Remember:

Parliament = Citizenship Laws

FAQ:

Q. Which authority has the power to make laws regarding citizenship?

A. Parliament.

Q. Which Act governs citizenship in India?

A. The Citizenship Act, 1955.

Q. Does Article 11 override Articles 5 to 10?

A. No. It complements them by giving Parliament the power to legislate on citizenship matters after the commencement of the Constitution.

MCQ 1:

Question:

Article 11 empowers whom to regulate citizenship by law?

Options:

- A. President
- B. Supreme Court
- C. Parliament
- D. Election Commission

Answer:

C

MCQ 2:

Question:

The Citizenship Act, 1955 derives its constitutional authority primarily from:

Options:

- A. Article 5

- B. Article 8
- C. Article 11
- D. Article 32

Answer:

C

SOURCE:

Constitution of India

Article 11

ARTICLE: 12

TITLE:

Definition of "State"

LAW:

Constitution of India

TEXT:

Article 12.

In this Part, unless the context otherwise requires, the State includes—

- the Government and Parliament of India;
- the Government and the Legislature of each of the States;
- all local authorities; and

- other authorities within the territory of India or under the control of the Government of India.

SUMMARY:

Article 12 defines the term "State" for the purposes of Part III (Fundamental Rights) of the Constitution. It identifies the authorities against whom Fundamental Rights can generally be enforced. The definition includes the Central Government, State Governments, Parliament, State Legislatures, local authorities, and other authorities that perform public functions or are controlled by the Government.

KEY POINTS:

- Defines "State" under Part III of the Constitution.
- Applies only to Fundamental Rights.
- Includes the Central Government.
- Includes State Governments.
- Includes Parliament and State Legislatures.
- Includes local authorities such as Municipal Corporations and Panchayats.
- Includes statutory bodies, public authorities, and government-controlled organizations.
- Fundamental Rights can generally be enforced against the "State."

IMPORTANT TERMS:

State

Fundamental Rights

Government of India

Parliament

State Legislature

Local Authority

Public Authority

Article 12

LANDMARK CASES:

Rajasthan State Electricity Board v. Mohan Lal (1967)

- Expanded the meaning of "other authorities" under Article 12.

Ajay Hasia v. Khalid Mujib Sehravardi (1981)

- Laid down tests to determine whether a body is an instrumentality or agency of the State.

Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (2002)

- Clarified when an organization can be treated as "State" under Article 12.

Zee Telefilms Ltd. v. Union of India (2005)

- Held that BCCI is generally not a "State" under Article 12, though public law remedies may still be available in certain circumstances.

RELATED ARTICLES:

Article 13

Article 14

Article 32

Article 226

EXAM NOTES:

- Article 12 is one of the most important constitutional provisions.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.
- Remember that private organizations are not automatically considered "State."
- Courts examine factors such as government control, funding, and public functions.

MEMORY TRICK:

Article 12 = "Who is the State?"

Remember:

Government + Legislature + Local Authorities + Government-Controlled Bodies = State

FAQ:

Q. Why is Article 12 important?

A. Because it defines against whom Fundamental Rights can generally be enforced.

Q. Are private companies covered under Article 12?

A. Generally no. However, if a body is substantially controlled by the Government or performs public functions, it may be treated as "State."

Q. Does Article 12 apply outside Fundamental Rights?

A. No. It specifically applies to Part III of the Constitution.

MCQ 1:

Question:

Article 12 defines the term:

Options:

A. Citizen

B. State

C. Government

D. Parliament

Answer:

B

MCQ 2:

Question:

Which of the following is included within the definition of "State" under Article 12?

Options:

- A. Government of India
- B. State Governments
- C. Local Authorities
- D. All of the Above

Answer:

D

SOURCE:

Constitution of India

Article 12

Rajasthan State Electricity Board v. Mohan Lal (1967)

Ajay Hasia v. Khalid Mujib Sehravardi (1981)

Pradeep Kumar Biswas v. Indian Institute of Chemical Biology (2002)

Zee Telefilms Ltd. v. Union of India (2005)

ARTICLE: 13

TITLE:

Laws Inconsistent with or in Derogation of the Fundamental Rights

LAW:

Constitution of India

TEXT:

Article 13.

(1) All laws in force in the territory of India immediately before the commencement of this Constitution, insofar as they are inconsistent with the provisions of Part III, shall, to the extent of such inconsistency, be void.

(2) The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void.

(3) In this article, unless the context otherwise requires—

(a) "law" includes any Ordinance, Order, Bye-law, Rule, Regulation, Notification, Custom or Usage having the force of law;

(b) "laws in force" includes laws passed or made by a Legislature or other competent authority before the commencement of this Constitution and not previously repealed.

(4) Nothing in this article shall apply to any amendment of this Constitution made under Article 368.

SUMMARY:

Article 13 is one of the most important provisions of the Constitution because it protects Fundamental Rights. It declares that any law inconsistent with Fundamental Rights is void to the extent of the inconsistency. It also prohibits the State from making laws that violate Fundamental Rights. However, Constitutional Amendments made under Article 368 are excluded from Article 13 by Clause (4).

KEY POINTS:

- Protects Fundamental Rights from unconstitutional laws.
- Pre-Constitution laws inconsistent with Fundamental Rights become void.
- The State cannot make laws violating Fundamental Rights.
- Only the inconsistent part of the law becomes void (Doctrine of Severability).
- Defines the meaning of "law."
- Constitutional Amendments under Article 368 are excluded after the 24th Constitutional Amendment.

IMPORTANT TERMS:

Fundamental Rights

Judicial Review

Ultra Vires

Doctrine of Severability

Doctrine of Eclipse

Void Law

Article 368

Constitutional Amendment

LANDMARK CASES:

Shankari Prasad v. Union of India (1951)

- Held that Constitutional Amendments are not "law" under Article 13.

Sajjan Singh v. State of Rajasthan (1965)

- Reaffirmed the Shankari Prasad judgment.

I.C. Golaknath v. State of Punjab (1967)

- Held that Parliament cannot amend Fundamental Rights under Article 368 because Constitutional Amendments were considered "law" under Article 13.

Kesavananda Bharati v. State of Kerala (1973)

- Introduced the Basic Structure Doctrine and held that Parliament can amend the Constitution but cannot destroy its Basic Structure.

Minerva Mills v. Union of India (1980)

- Reaffirmed the Basic Structure Doctrine and balanced Fundamental Rights with Directive Principles.

RELATED ARTICLES:

Article 12

Article 14

Article 32

Article 226

Article 368

EXAM NOTES:

- Article 13 is known as the "Guardian of Fundamental Rights."
- It is the constitutional basis of Judicial Review.
- Remember the Doctrine of Severability and the Doctrine of Eclipse.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 13 = "Unconstitutional Law = Void"

Remember:

Fundamental Rights > Ordinary Laws

FAQ:

Q. What happens if a law violates Fundamental Rights?

A. It becomes void to the extent of the inconsistency.

Q. Can the State make laws against Fundamental Rights?

A. No. Article 13(2) expressly prohibits it.

Q. Which doctrine allows only the unconstitutional portion of a law to become void?

A. The Doctrine of Severability.

Q. Is every Constitutional Amendment considered a law under Article 13?

A. No. After the 24th Constitutional Amendment, Article 13(4) provides that Constitutional Amendments made under Article 368 are not covered by Article 13.

MCQ 1:

Question:

Article 13 primarily protects:

Options:

- A. Directive Principles
- B. Fundamental Duties
- C. Fundamental Rights
- D. Emergency Powers

Answer:

C

MCQ 2:

Question:

Which landmark judgment introduced the Basic Structure Doctrine?

Options:

- A. Golaknath Case
- B. Kesavananda Bharati Case
- C. Minerva Mills Case
- D. Shankari Prasad Case

Answer:

B

SOURCE:

Constitution of India

Article 13

Shankari Prasad v. Union of India (1951)

I.C. Golaknath v. State of Punjab (1967)

Kesavananda Bharati v. State of Kerala (1973)

Minerva Mills v. Union of India (1980)

ARTICLE: 14

TITLE:

Equality Before Law

LAW:

Constitution of India

TEXT:

Article 14.

The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

SUMMARY:

Article 14 guarantees equality before the law and equal protection of the laws to every person within the territory of India. It ensures that no individual is above the law and that all persons are treated equally in similar circumstances. However, Article 14 permits reasonable classification if it is based on an intelligible differentia and has a rational nexus with the objective sought to be achieved.

KEY POINTS:

- Guarantees equality before the law.
- Guarantees equal protection of the laws.
- Applies to both citizens and non-citizens.
- No person is above the law.
- Permits reasonable classification.

- Prohibits arbitrary State action.
- Forms the foundation of the Right to Equality (Articles 14–18).

IMPORTANT TERMS:

Equality Before Law

Equal Protection of Laws

Reasonable Classification

Intelligible Differentia

Rational Nexus

Arbitrariness

Rule of Law

LANDMARK CASES:

State of West Bengal v. Anwar Ali Sarkar (1952)

- Explained the doctrine of reasonable classification under Article 14.

E.P. Royappa v. State of Tamil Nadu (1974)

- Held that arbitrariness is the antithesis of equality.

Maneka Gandhi v. Union of India (1978)

- Expanded the scope of Article 14 by holding that State action must be fair, just, and reasonable.

Ajay Hasia v. Khalid Mujib Sehravardi (1981)

- Clarified that arbitrary State action violates Article 14.

Shayara Bano v. Union of India (2017)

- Declared Triple Talaq unconstitutional, emphasizing that arbitrary laws violate Article 14.

RELATED ARTICLES:

Article 12

Article 13

Article 15

Article 16

Article 21

EXAM NOTES:

- Article 14 is the foundation of the Right to Equality.
- It applies to every person, including foreigners.
- Equality does not mean identical treatment in every situation.
- Reasonable classification is permitted.
- Class legislation is prohibited.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 14 = Equality for All

Remember:

Equality Before Law + Equal Protection of Laws = Article 14

FAQ:

Q. Does Article 14 apply only to citizens?

A. No. It applies to every person within the territory of India.

Q. Does Article 14 prohibit all classifications?

A. No. It only prohibits arbitrary or unreasonable classification. Reasonable classification is permitted.

Q. What are the two conditions for reasonable classification?

A.

1. Intelligible Differentia.

2. Rational Nexus with the objective.

Q. Which doctrine is closely associated with Article 14?

A. Rule of Law and Reasonable Classification.

MCQ 1:

Question:

Article 14 guarantees:

Options:

A. Freedom of Speech

B. Equality Before Law

C. Freedom of Religion

D. Right to Education

Answer:

B

MCQ 2:

Question:

Which landmark judgment held that arbitrariness is the antithesis of equality?

Options:

A. Kesavananda Bharati v. State of Kerala

B. E.P. Royappa v. State of Tamil Nadu

C. Golaknath v. State of Punjab

D. Minerva Mills v. Union of India

Answer:

B

SOURCE:

Constitution of India

Article 14

State of West Bengal v. Anwar Ali Sarkar (1952)

E.P. Royappa v. State of Tamil Nadu (1974)

Maneka Gandhi v. Union of India (1978)

Ajay Hasia v. Khalid Mujib Sehravardi (1981)

Shayara Bano v. Union of India (2017)

ARTICLE: 15

TITLE:

Prohibition of Discrimination on Grounds of Religion, Race, Caste, Sex or Place of Birth

LAW:

Constitution of India

TEXT:

Article 15.

(1) The State shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth or any of them.

(2) No citizen shall, on grounds only of religion, race, caste, sex, place of birth or any of them, be subject to any disability, liability, restriction or condition with regard to—

(a) access to shops, public restaurants, hotels and places of public entertainment; or

(b) the use of wells, tanks, bathing ghats, roads and places of public resort maintained wholly or partly out of State funds or dedicated to the use of the general public.

(3) Nothing in this article shall prevent the State from making any special provision for women and children.

(4) Nothing in this article or in clause (2) of Article 29 shall prevent the State from making any special provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes.

(5) Nothing in this article or in sub-clause (g) of clause (1) of Article 19 shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than minority educational institutions referred to in clause (1) of Article 30.

(6) Nothing in this article or sub-clause (g) of clause (1) of Article 19 or clause (2) of Article 29 shall prevent the State from making any special provision for the advancement of any economically weaker sections (EWS) of citizens other than the classes mentioned in clauses

(4) and (5), including reservation in educational institutions, whether aided or unaided by the State, other than minority educational institutions referred to in clause (1) of Article 30.

SUMMARY:

Article 15 prohibits discrimination by the State against citizens on the grounds of religion, race, caste, sex, or place of birth. At the same time, it permits affirmative action by allowing special provisions for women, children, socially and educationally backward classes, Scheduled Castes (SC), Scheduled Tribes (ST), and Economically Weaker Sections (EWS). Thus, Article 15 promotes substantive equality rather than merely formal equality.

KEY POINTS:

- Prohibits discrimination on specified grounds.
- Applies only to citizens.
- Ensures equal access to public places.
- Permits special provisions for women and children.
- Permits reservation for SC, ST and OBC.
- Permits reservation for Economically Weaker Sections (EWS).
- Supports affirmative action to achieve social justice.

IMPORTANT TERMS:

Equality

Discrimination

Reservation

Affirmative Action

Social Justice

Backward Classes

SC

ST

OBC

EWS

LANDMARK CASES:

State of Madras v. Champakam Dorairajan (1951)

- The Supreme Court struck down caste-based reservation, leading to the First Constitutional Amendment and insertion of Article 15(4).

M.R. Balaji v. State of Mysore (1963)

- Held that reservation should generally not exceed reasonable limits.

Indra Sawhney v. Union of India (1992)

- Upheld OBC reservation and introduced the concept of the Creamy Layer.

Ashoka Kumar Thakur v. Union of India (2008)

- Upheld reservation for OBCs in educational institutions under Article 15(5).

Janhit Abhiyan v. Union of India (2022)

- Upheld the constitutional validity of the 103rd Constitutional Amendment providing EWS reservation under Article 15(6).

RELATED ARTICLES:

Article 14

Article 16

Article 17

Article 29

Article 30

EXAM NOTES:

- Article 15 applies only to citizens.
- Article 15 prohibits discrimination but allows affirmative action.
- Remember the difference:
 - Article 15 → Reservation in education and social welfare.
 - Article 16 → Reservation in public employment.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 15 = No Discrimination + Reservation Allowed

Remember:

No Discrimination

+

Special Protection

=

Article 15

FAQ:

Q. Does Article 15 apply to foreigners?

A. No. It applies only to citizens of India.

Q. Can the Government provide reservations under Article 15?

A. Yes. Reservations for SC, ST, OBC and EWS are constitutionally permitted.

Q. Can women receive special benefits under Article 15?

A. Yes. Article 15(3) specifically allows special provisions for women and children.

Q. Which Constitutional Amendment introduced EWS reservation?

A. The 103rd Constitutional Amendment, 2019.

MCQ 1:

Question:

Article 15 prohibits discrimination on which of the following grounds?

Options:

A. Religion

B. Race

C. Caste

D. All of the Above

Answer:

D

MCQ 2:

Question:

Which Constitutional Amendment introduced reservation for Economically Weaker Sections (EWS)?

Options:

A. 42nd Amendment

B. 73rd Amendment

C. 103rd Amendment

D. 44th Amendment

Answer:

C

SOURCE:

Constitution of India

Article 15

State of Madras v. Champakam Dorairajan (1951)

Indra Sawhney v. Union of India (1992)

Ashoka Kumar Thakur v. Union of India (2008)

Janhit Abhiyan v. Union of India (2022)

ARTICLE: 16

TITLE:

Equality of Opportunity in Matters of Public Employment

LAW:

Constitution of India

TEXT:

Article 16.

(1) There shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State.

(2) No citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence or any of them, be ineligible for, or discriminated against in respect of, any employment or office under the State.

(3) Nothing in this article shall prevent Parliament from making any law prescribing, in regard to a class or classes of employment or appointment to an office under the Government of, or any local or other authority within, a State or Union Territory, any requirement as to residence within that State or Union Territory prior to such employment or appointment.

(4) Nothing in this article shall prevent the State from making any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State.

(4A) Nothing in this article shall prevent the State from making any provision for reservation in matters of promotion, with consequential seniority, to any class or classes of posts in the services under the State in favour of the Scheduled Castes and the Scheduled Tribes which, in the opinion of the State, are not adequately represented in the services under the State.

(4B) Nothing in this article shall prevent the State from considering any unfilled reserved vacancies as a separate class of vacancies to be filled in any succeeding year.

(5) Nothing in this article shall affect the operation of any law which provides that the incumbent of an office connected with the affairs of any religious or denominational institution shall be a person professing a particular religion or belonging to a particular denomination.

(6) Nothing in this article shall prevent the State from making any provision for reservation in appointments or posts in favour of any economically weaker sections (EWS) of citizens other than the classes mentioned in clause (4).

SUMMARY:

Article 16 guarantees equality of opportunity for all citizens in matters relating to public employment under the State. It prohibits discrimination in government employment on specified grounds while allowing reservations for backward classes, Scheduled Castes (SC), Scheduled Tribes (ST), and Economically Weaker Sections (EWS). The Article seeks to balance

equality with social justice by ensuring adequate representation of disadvantaged groups in public services.

KEY POINTS:

- Guarantees equality of opportunity in public employment.
- Applies only to government employment.
- Applies only to citizens of India.
- Prohibits discrimination in public employment.
- Permits reservation for backward classes.
- Permits reservation in promotion for SCs and STs.
- Allows carry-forward of unfilled reserved vacancies.
- Permits EWS reservation in public employment.
- Parliament may prescribe residence requirements in certain cases.

IMPORTANT TERMS:

Equality of Opportunity

Public Employment

Reservation

Promotion

Backward Classes

Scheduled Castes

Scheduled Tribes

Economically Weaker Sections (EWS)

Adequate Representation

LANDMARK CASES:

State of Kerala v. N.M. Thomas (1976)

- Recognized that reservation is an aspect of equality.

Indra Sawhney v. Union of India (1992)

- Upheld OBC reservation.
- Introduced the Creamy Layer principle.
- Held that reservation in promotion is generally not permissible under Article 16(4).

M. Nagaraj v. Union of India (2006)

- Upheld reservation in promotion subject to constitutional requirements such as backwardness, inadequate representation, and administrative efficiency.

Jarnail Singh v. Lachhmi Narain Gupta (2018)

- Clarified the application of reservation in promotions and modified certain requirements laid down in M. Nagaraj.

Janhit Abhiyan v. Union of India (2022)

- Upheld the constitutional validity of EWS reservation under Article 16(6).

RELATED ARTICLES:

Article 14

Article 15

Article 17

Article 335

EXAM NOTES:

- Article 16 applies only to public employment.
- It guarantees equality of opportunity, not equality of outcome.
- Reservation is an exception designed to achieve substantive equality.
- Remember:

- Article 15 → Education and Social Welfare.
 - Article 16 → Public Employment.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, SSC, and State PCS examinations.

MEMORY TRICK:

Article 16 = Government Jobs

Remember:

Government Job

+

Equal Opportunity

+

Reservation

=

Article 16

FAQ:

Q. Does Article 16 apply to private companies?

A. No. It applies only to employment under the State.

Q. Can reservation be provided in government jobs?

A. Yes. Article 16 permits reservation for eligible backward classes, SCs, STs, and EWS as provided by law.

Q. Does Article 16 apply to foreigners?

A. No. It applies only to citizens of India.

Q. Which landmark case introduced the Creamy Layer principle?

A. Indra Sawhney v. Union of India (1992).

MCQ 1:

Question:

Article 16 guarantees equality of opportunity in:

Options:

- A. Private Employment
- B. Public Employment
- C. Business
- D. Education

Answer:

B

MCQ 2:

Question:

Which landmark judgment introduced the Creamy Layer principle?

Options:

- A. Kesavananda Bharati
- B. Maneka Gandhi
- C. Indra Sawhney
- D. Golaknath

Answer:

C

SOURCE:

Constitution of India

Article 16

State of Kerala v. N.M. Thomas (1976)

Indra Sawhney v. Union of India (1992)

M. Nagaraj v. Union of India (2006)

Jarnail Singh v. Lachhmi Narain Gupta (2018)

Janhit Abhiyan v. Union of India (2022)

ARTICLE: 17

TITLE:

Abolition of Untouchability

LAW:

Constitution of India

TEXT:

Article 17.

"Untouchability" is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of "Untouchability" shall be an offence punishable in accordance with law.

SUMMARY:

Article 17 abolishes the practice of untouchability in all its forms and declares its enforcement as a punishable offence. It is one of the most significant provisions of the Constitution aimed at ensuring social equality and human dignity. The Article empowers Parliament to enact laws to punish acts of untouchability and eliminate caste-based discrimination from society.

KEY POINTS:

- Abolishes untouchability in all forms.
- Declares the practice of untouchability illegal.
- Makes enforcement of untouchability a punishable offence.
- Promotes equality, dignity, and social justice.
- Applies against both the State and private individuals.
- Forms the constitutional basis for laws prohibiting untouchability.

IMPORTANT TERMS:

Untouchability

Social Equality

Human Dignity

Discrimination

Scheduled Castes

Civil Rights

Protection

ARTICLE: 18

TITLE:

Abolition of Titles

LAW:

Constitution of India

TEXT:

Article 18.

(1) No title, not being a military or academic distinction, shall be conferred by the State.

(2) No citizen of India shall accept any title from any foreign State.

(3) No person who is not a citizen of India shall, while holding any office of profit or trust under the State, accept without the consent of the President any title from any foreign State.

(4) No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State.

SUMMARY:

Article 18 abolishes titles to promote equality and prevent the creation of artificial social distinctions. It prohibits the State from conferring titles except military and academic distinctions. Indian citizens are also prohibited from accepting titles from foreign States. The Article reflects the constitutional commitment to equality and the democratic principle that no individual should enjoy privileges based on hereditary or honorary titles.

KEY POINTS:

- Abolishes titles conferred by the State.
- Military and academic distinctions are permitted.
- Indian citizens cannot accept titles from foreign States.
- Foreign nationals holding public office require the President's consent before accepting foreign titles.

- Public servants require the President's consent before accepting presents, emoluments, or offices from foreign States.
- Promotes equality and democratic values.

IMPORTANT TERMS:

Titles

Military Distinction

Academic Distinction

Foreign State

President

Equality

Office of Profit

Office of Trust

LANDMARK CASES:

Balaji Raghavan v. Union of India (1996)

- The Supreme Court held that civilian awards such as the Bharat Ratna and Padma Awards are constitutional because they are not hereditary titles and cannot be used as prefixes or suffixes.

RELATED ARTICLES:

Article 14

Article 15

Article 16

Article 17

EXAM NOTES:

- Article 18 is the last Article under the Right to Equality (Articles 14–18).

- Military honours like Param Vir Chakra, Maha Vir Chakra, and Vir Chakra are valid.
- Academic degrees like B.A., M.Tech., M.B.B.S., Ph.D., etc., are valid.
- Civilian awards like Bharat Ratna and Padma Awards are constitutional but cannot be treated as titles.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 18 = No Titles

Remember:

Equality

+

No Titles

=

Article 18

FAQ:

Q. Can the Government confer military awards?

A. Yes. Military distinctions are specifically permitted under Article 18.

Q. Are academic degrees prohibited?

A. No. Academic distinctions are expressly allowed.

Q. Can an Indian citizen accept a title from a foreign country?

A. No. Article 18(2) prohibits Indian citizens from accepting titles from foreign States.

Q. Are Bharat Ratna and Padma Awards unconstitutional?

A. No. The Supreme Court held in *Balaji Raghavan v. Union of India* (1996) that these awards are constitutional, provided they are not used as titles.

MCQ 1:

Question:

Which of the following titles may be conferred by the State under Article 18?

Options:

- A. Raja
- B. Nawab
- C. Param Vir Chakra
- D. Sir

Answer:

C

MCQ 2:

Question:

Which landmark case upheld the constitutional validity of Bharat Ratna and Padma Awards?

Options:

- A. *Kesavananda Bharati v. State of Kerala*
- B. *Maneka Gandhi v. Union of India*
- C. *Balaji Raghavan v. Union of India*
- D. *Golaknath v. State of Punjab*

Answer:

C

SOURCE:

Constitution of India

Article 18

Balaji Raghavan v. Union of India (1996)

ARTICLE: 19

TITLE:

Protection of Certain Rights Regarding Freedom of Speech, etc.

LAW:

Constitution of India

TEXT:

Article 19.

(1) All citizens shall have the right—

(a) to freedom of speech and expression;

(b) to assemble peaceably and without arms;

(c) to form associations or unions or co-operative societies;

(d) to move freely throughout the territory of India;

(e) to reside and settle in any part of the territory of India;

(f) Omitted by the Constitution (Forty-fourth Amendment) Act, 1978;

(g) to practise any profession, or to carry on any occupation, trade or business.

(2) Nothing in sub-clause (a) of clause (1) shall affect the operation of any existing law, or prevent the State from making any law, in so far as such law imposes reasonable restrictions on the exercise of the right conferred by the said sub-clause in the interests of—

- Sovereignty and Integrity of India
- Security of the State
- Friendly Relations with Foreign States
- Public Order
- Decency or Morality
- Contempt of Court
- Defamation
- Incitement to an Offence

(3) Nothing in sub-clause (b) shall affect the operation of any existing law or prevent the State from making any law imposing reasonable restrictions in the interests of the sovereignty and integrity of India or public order.

(4) Nothing in sub-clause (c) shall affect the operation of any existing law or prevent the State from making any law imposing reasonable restrictions in the interests of the sovereignty and integrity of India, public order or morality.

(5) Nothing in sub-clauses (d) and (e) shall affect the operation of any existing law or prevent the State from making any law imposing reasonable restrictions in the interests of the general public or for the protection of the interests of any Scheduled Tribe.

(6) Nothing in sub-clause (g) shall affect the operation of any existing law or prevent the State from making any law imposing reasonable restrictions in the interests of the general public or prescribing professional or technical qualifications or permitting the State to carry on any trade, business, industry or service.

SUMMARY:

Article 19 guarantees six fundamental freedoms to Indian citizens. These freedoms include speech and expression, peaceful assembly, association, movement, residence, and profession. These rights are not absolute and may be reasonably restricted by the State for specific constitutional purposes such as national security, public order, morality, and sovereignty. Article 19 is regarded as one of the most important Fundamental Rights and forms the backbone of Indian democracy.

KEY POINTS:

- Guarantees six Fundamental Freedoms.
- Applies only to Indian citizens.
- Freedom of Speech and Expression is protected.
- Peaceful Assembly without arms is protected.
- Citizens can form associations, unions and co-operative societies.
- Citizens can move freely throughout India.
- Citizens can reside and settle anywhere in India.
- Citizens can choose any lawful profession, occupation, trade or business.
- All freedoms are subject to reasonable restrictions.
- Right to Property was removed from Article 19 by the 44th Constitutional Amendment (1978).

IMPORTANT TERMS:

Freedom of Speech

Freedom of Expression

Reasonable Restrictions

Public Order

Sovereignty

Security of State

Defamation

Contempt of Court

Freedom of Movement

Freedom of Profession

LANDMARK CASES:

Romesh Thappar v. State of Madras (1950)

- Freedom of speech is the foundation of democracy.

Brij Bhushan v. State of Delhi (1950)

- Prior censorship generally violates freedom of speech.

Bennett Coleman & Co. v. Union of India (1973)

- Freedom of the Press is part of Article 19(1)(a).

Maneka Gandhi v. Union of India (1978)

- Expanded the interpretation of personal liberty and linked Articles 14, 19 and 21.

S. Rangarajan v. P. Jagjivan Ram (1989)

- Freedom of expression cannot be suppressed unless there is a clear danger to public order.

Shreya Singhal v. Union of India (2015)

- Struck down Section 66A of the Information Technology Act as unconstitutional for violating Article 19(1)(a).

Anuradha Bhasin v. Union of India (2020)

- Held that access to the Internet is protected as part of the freedom of speech and expression and the freedom to carry on trade through the Internet, subject to reasonable restrictions.

RELATED ARTICLES:

Article 14

Article 21

Article 32

Article 51A

EXAM NOTES:

- Article 19 applies only to citizens.
- Remember the six freedoms under Article 19(1).
- All freedoms are subject to reasonable restrictions.
- Article 19 is one of the most frequently asked Articles in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.
- Freedom of the Press is not separately mentioned but is part of Article 19(1)(a).

MEMORY TRICK:

Article 19 = "SAMMRP"

S – Speech & Expression

A – Assembly

M – Movement

M – Make Associations

R – Residence

P – Profession

FAQ:

Q. Who can claim Article 19?

A. Only Indian citizens.

Q. Is Freedom of Speech absolute?

A. No. It is subject to reasonable restrictions under Article 19(2).

Q. Is Freedom of the Press mentioned separately in the Constitution?

A. No. It is included within Freedom of Speech and Expression under Article 19(1)(a).

Q. Which Fundamental Right was removed from Article 19?

A. The Right to Property under Article 19(1)(f) by the 44th Constitutional Amendment.

MCQ 1:

Question:

Article 19 guarantees how many fundamental freedoms?

Options:

A. Four

B. Five

C. Six

D. Seven

Answer:

C

MCQ 2:

Question:

Which landmark judgment struck down Section 66A of the Information Technology Act for violating Article 19?

Options:

A. Maneka Gandhi v. Union of India

B. Kesavananda Bharati v. State of Kerala

C. Shreya Singhal v. Union of India

D. Golaknath v. State of Punjab

Answer:

C

SOURCE:

Constitution of India

Article 19

Romesh Thappar v. State of Madras (1950)

Bennett Coleman & Co. v. Union of India (1973)

Maneka Gandhi v. Union of India (1978)

Shreya Singhal v. Union of India (2015)

Anuradha Bhasin v. Union of India (2020)

ARTICLE: 20

TITLE:

Protection in Respect of Conviction for Offences

LAW:

Constitution of India

TEXT:

Article 20.

(1) No person shall be convicted of any offence except for violation of a law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.

(2) No person shall be prosecuted and punished for the same offence more than once.

(3) No person accused of any offence shall be compelled to be a witness against himself.

SUMMARY:

Article 20 provides important safeguards to individuals accused or convicted of criminal offences. It protects against retrospective criminal laws (Ex Post Facto Laws), double punishment for the same offence (Double Jeopardy), and self-incrimination. These protections ensure fairness in criminal justice and uphold the rule of law. Unlike Article 19, Article 20 is available to both citizens and non-citizens.

KEY POINTS:

- Protects persons accused or convicted of criminal offences.
- Prohibits conviction under retrospective criminal laws.
- Prohibits double punishment for the same offence.
- Protects against self-incrimination.
- Applies only to criminal offences.
- Available to both citizens and non-citizens.
- These protections continue even during a National Emergency under Article 359.

IMPORTANT TERMS:

Ex Post Facto Law

Double Jeopardy

Self-Incrimination

Criminal Liability

Conviction

Punishment

Fair Trial

Criminal Justice

LANDMARK CASES:

Rao Shiv Bahadur Singh v. State of Vindhya Pradesh (1953)

- The Supreme Court explained the protection against Ex Post Facto criminal laws.

Maqbool Hussain v. State of Bombay (1953)

- Clarified that Double Jeopardy applies only when there has been prosecution and punishment by a judicial court.

S.A. Venkataraman v. Union of India (1954)

- Departmental proceedings are not considered prosecution under Article 20(2).

State of Bombay v. Kathi Kalu Oghad (1962)

- Held that giving fingerprints, handwriting, signatures, or voice samples does not amount to self-incrimination.

Selvi v. State of Karnataka (2010)

- The Supreme Court held that compulsory narco-analysis, polygraph tests, and Brain Electrical Activation Profile (BEAP) tests violate Article 20(3) unless conducted with the person's voluntary consent.

RELATED ARTICLES:

Article 21

Article 22

Article 32

Article 39A

EXAM NOTES:

- Article 20 applies only to criminal offences.
- It protects both citizens and foreigners.

- Remember the three protections:

1. Ex Post Facto Law
2. Double Jeopardy
3. Self-Incrimination

- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 20 = "EDS"

E → Ex Post Facto

D → Double Jeopardy

S → Self-Incrimination

FAQ:

Q. Does Article 20 apply to civil cases?

A. No. It applies only to criminal offences.

Q. Can a person be punished twice for the same offence?

A. No. Article 20(2) prohibits Double Jeopardy.

Q. Can an accused person be forced to confess?

A. No. Article 20(3) protects against compelled self-incrimination.

Q. Are fingerprints and handwriting samples protected under Article 20(3)?

A. No. The Supreme Court has held that such physical evidence is not considered testimonial self-incrimination.

MCQ 1:

Question:

Which of the following is NOT protected under Article 20?

Options:

A. Ex Post Facto Law

B. Double Jeopardy

C. Self-Incrimination

D. Preventive Detention

Answer:

D

MCQ 2:

Question:

Which landmark case held that compulsory narco-analysis violates Article 20(3)?

Options:

A. Maneka Gandhi v. Union of India

B. Selvi v. State of Karnataka

C. Keshavananda Bharati v. State of Kerala

D. Shreya Singhal v. Union of India

Answer:

B

SOURCE:

Constitution of India

Article 20

Rao Shiv Bahadur Singh v. State of Vindhya Pradesh (1953)

Maqbool Hussain v. State of Bombay (1953)

State of Bombay v. Kathi Kalu Oghad (1962)

Selvi v. State of Karnataka (2010)

ARTICLE: 21

TITLE:

Protection of Life and Personal Liberty

LAW:

Constitution of India

TEXT:

Article 21.

No person shall be deprived of his life or personal liberty except according to procedure established by law.

SUMMARY:

Article 21 guarantees every person the fundamental right to life and personal liberty. It provides that no person can be deprived of life or personal liberty except according to a procedure established by law. Through judicial interpretation, the Supreme Court has greatly expanded the scope of Article 21 to include several rights necessary for living a life with dignity. It is regarded as the heart of the Fundamental Rights chapter.

KEY POINTS:

- Guarantees the Right to Life.
- Guarantees the Right to Personal Liberty.
- Applies to both citizens and non-citizens.
- Life means more than mere animal existence.
- Personal liberty can be restricted only by a fair, just and reasonable law.
- The Supreme Court has expanded Article 21 to include numerous implied rights.
- One of the most frequently invoked Fundamental Rights.

IMPORTANT TERMS:

Right to Life

Personal Liberty

Human Dignity

Procedure Established by Law

Due Process

Natural Justice

Fair Procedure

Judicial Interpretation

LANDMARK CASES:

A.K. Gopalan v. State of Madras (1950)

- Initially interpreted Article 21 narrowly and held that "procedure established by law" meant any procedure enacted by law.

Maneka Gandhi v. Union of India (1978)

- A landmark judgment that transformed Article 21.
- Held that the procedure must be fair, just and reasonable.
- Linked Articles 14, 19 and 21 together.

Francis Coralie Mullin v. Administrator, Union Territory of Delhi (1981)

- Held that the Right to Life includes the right to live with human dignity.

Olga Tellis v. Bombay Municipal Corporation (1985)

- Recognized the Right to Livelihood as part of Article 21.

Unni Krishnan v. State of Andhra Pradesh (1993)

- Recognized the Right to Education as part of Article 21 before Article 21A was introduced.

D.K. Basu v. State of West Bengal (1997)

- Laid down guidelines against custodial violence and illegal arrests.

People's Union for Civil Liberties (PUCL) v. Union of India (1997)

- Recognized the Right to Privacy in telephone conversations.

Justice K.S. Puttaswamy v. Union of India (2017)

- Declared the Right to Privacy as a Fundamental Right under Article 21.

Common Cause v. Union of India (2018)

- Recognized the Right to Die with Dignity through passive euthanasia under specific conditions.

RIGHTS DERIVED FROM ARTICLE 21:

- Right to Live with Human Dignity
- Right to Privacy
- Right to Livelihood
- Right to Health
- Right to Education (before Article 21A)
- Right to Clean Environment
- Right to Clean Drinking Water
- Right to Shelter
- Right to Speedy Trial
- Right to Legal Aid
- Right against Custodial Torture
- Right to Reputation
- Right to Sleep
- Right to Travel Abroad
- Right to Emergency Medical Care
- Right to Die with Dignity (Passive Euthanasia)

RELATED ARTICLES:

Article 14

Article 19

Article 20

Article 21A

Article 22

Article 32

EXAM NOTES:

- Article 21 is one of the most important Articles of the Constitution.
- Applies to every person, including foreigners.
- The phrase "procedure established by law" has been interpreted to require fairness, justice and reasonableness.
- Often called the "Heart of Fundamental Rights."
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 21 = "Life + Liberty + Dignity"

Remember:

Life

+

Liberty

+

Privacy

+

Dignity

=

Article 21

FAQ:

Q. Does Article 21 apply only to citizens?

A. No. It applies to every person, including foreigners.

Q. Which judgment expanded the scope of Article 21?

A. Maneka Gandhi v. Union of India (1978).

Q. Is the Right to Privacy part of Article 21?

A. Yes. It was recognized as a Fundamental Right in Justice K.S. Puttaswamy v. Union of India (2017).

Q. Does Article 21 include the Right to Livelihood?

A. Yes. The Supreme Court recognized it in Olga Tellis v. Bombay Municipal Corporation (1985).

Q. Why is Article 21 called the heart of Fundamental Rights?

A. Because it protects the most essential human rights and has been interpreted to include numerous rights necessary for living with dignity.

MCQ 1:

Question:

Which landmark judgment transformed Article 21 by holding that the procedure established by law must be fair, just and reasonable?

Options:

A. A.K. Gopalan v. State of Madras

B. Maneka Gandhi v. Union of India

C. Golaknath v. State of Punjab

D. Kesavananda Bharati v. State of Kerala

Answer:

B

MCQ 2:

Question:

Which of the following rights has been recognized as part of Article 21?

Options:

A. Right to Privacy

B. Right to Livelihood

C. Right to Clean Environment

D. All of the Above

Answer:

D

SOURCE:

Constitution of India

Article 21

A.K. Gopalan v. State of Madras (1950)

Maneka Gandhi v. Union of India (1978)

Francis Coralie Mullin v. Administrator (1981)

Olga Tellis v. Bombay Municipal Corporation (1985)

Unni Krishnan v. State of Andhra Pradesh (1993)

D.K. Basu v. State of West Bengal (1997)

Justice K.S. Puttaswamy v. Union of India (2017)

Common Cause v. Union of India (2018)

ARTICLE: 21A

TITLE:

Right to Education

LAW:

Constitution of India

TEXT:

Article 21A.

The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.

SUMMARY:

Article 21A guarantees every child between the ages of 6 and 14 years the fundamental right to free and compulsory education. It was inserted by the Constitution (Eighty-sixth Amendment) Act, 2002 and came into force on 1 April 2010 through the Right of Children to Free and Compulsory Education Act, 2009 (RTE Act). The objective of Article 21A is to ensure universal elementary education and promote literacy, equality, and social development.

KEY POINTS:

- Guarantees free and compulsory education.
- Applies to children between 6 and 14 years of age.
- Education is a Fundamental Right.
- Inserted by the 86th Constitutional Amendment, 2002.
- Implemented through the Right to Education (RTE) Act, 2009.
- The responsibility lies with the State.
- Promotes universal elementary education.

IMPORTANT TERMS:

Right to Education

RTE Act

Free Education

Compulsory Education

Elementary Education

86th Constitutional Amendment

Fundamental Right

LANDMARK CASES:

Mohini Jain v. State of Karnataka (1992)

- Recognized education as an essential part of the Right to Life under Article 21.

Unni Krishnan v. State of Andhra Pradesh (1993)

- Held that the Right to Education is a Fundamental Right for children up to the age of 14 years.
- This judgment laid the foundation for Article 21A.

Society for Unaided Private Schools of Rajasthan v. Union of India (2012)

- Upheld the constitutional validity of the Right to Education Act, 2009.

Pramati Educational & Cultural Trust v. Union of India (2014)

- Clarified that minority educational institutions are exempt from certain provisions of the RTE Act.

RELATED ARTICLES:

Article 21

Article 24

Article 39(e)

Article 39(f)

Article 41

Article 45

Article 46

Article 51A(k)

EXAM NOTES:

- Inserted by the 86th Constitutional Amendment Act, 2002.
- Implemented through the RTE Act, 2009.
- Applies only to children aged 6–14 years.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.
- Parents and guardians also have a Fundamental Duty under Article 51A(k) to provide educational opportunities to children.

MEMORY TRICK:

Article 21A = Education for Every Child

Remember:

6 Years



14 Years



Free + Compulsory Education

FAQ:

Q. Which Constitutional Amendment inserted Article 21A?

A. The Constitution (Eighty-sixth Amendment) Act, 2002.

Q. Which children are covered under Article 21A?

A. All children between 6 and 14 years of age.

Q. Which Act implements Article 21A?

A. The Right of Children to Free and Compulsory Education Act, 2009 (RTE Act).

Q. Is education beyond 14 years a Fundamental Right under Article 21A?

A. No. Article 21A specifically covers children between 6 and 14 years of age.

MCQ 1:

Question:

Article 21A guarantees free and compulsory education to children between:

Options:

A. 3–6 years

B. 6–14 years

C. 14–18 years

D. 5–15 years

Answer:

B

MCQ 2:

Question:

Which Constitutional Amendment inserted Article 21A?

Options:

A. 42nd Amendment

B. 44th Amendment

C. 86th Amendment

D. 103rd Amendment

Answer:

C

SOURCE:

Constitution of India

Article 21A

Constitution (Eighty-sixth Amendment) Act, 2002

Right of Children to Free and Compulsory Education Act, 2009

Mohini Jain v. State of Karnataka (1992)

Unni Krishnan v. State of Andhra Pradesh (1993)

Society for Unaided Private Schools of Rajasthan v. Union of India (2012)

Pramati Educational & Cultural Trust v. Union of India (2014)

ARTICLE: 22

TITLE:

Protection Against Arrest and Detention in Certain Cases

LAW:

Constitution of India

TEXT:

Article 22.

(1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest nor shall he be denied the right to consult, and to be defended by, a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before the nearest Magistrate within a period of twenty-four hours of such arrest excluding the time

necessary for the journey from the place of arrest to the Court of the Magistrate and no such person shall be detained in custody beyond the said period without the authority of a Magistrate.

(3) Nothing in clauses (1) and (2) shall apply—

(a) to any person who for the time being is an enemy alien; or

(b) to any person who is arrested or detained under any law providing for preventive detention.

(4) No law providing for preventive detention shall authorize the detention of a person for a period longer than three months unless—

(a) an Advisory Board consisting of persons who are, or have been, or are qualified to be appointed as Judges of a High Court has reported before the expiration of the said period that there is sufficient cause for such detention; or

(b) such person is detained in accordance with the provisions of any law made by Parliament.

(5) When any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order.

(6) Nothing in clause (5) shall require the authority to disclose facts which it considers to be against the public interest.

(7) Parliament may by law prescribe—

(a) the circumstances under which a person may be detained for more than three months without obtaining the opinion of an Advisory Board;

(b) the maximum period for which any person may in any class or classes of cases be detained under any law providing for preventive detention; and

(c) the procedure to be followed by an Advisory Board.

SUMMARY:

Article 22 protects individuals against arbitrary arrest and detention. It guarantees important procedural safeguards such as the right to know the grounds of arrest, the right to consult a lawyer, and the right to be produced before a Magistrate within 24 hours. However, these safeguards do not fully apply in cases of preventive detention or to enemy aliens. Article 22 attempts to balance individual liberty with the interests of national security and public order.

KEY POINTS:

- Protects against arbitrary arrest.
- Right to know the grounds of arrest.
- Right to consult and be defended by a lawyer.
- Mandatory production before a Magistrate within 24 hours.
- Detention beyond 24 hours requires Magistrate's approval.
- Special provisions exist for preventive detention.
- Enemy aliens are excluded from certain protections.
- Preventive detention beyond three months generally requires review by an Advisory Board unless Parliament provides otherwise.

IMPORTANT TERMS:

Arrest

Detention

Preventive Detention

Magistrate

Legal Practitioner

Enemy Alien

Advisory Board

Personal Liberty

LANDMARK CASES:

A.K. Gopalan v. State of Madras (1950)

- One of the earliest cases interpreting preventive detention under Article 22.

ADM Jabalpur v. Shivkant Shukla (1976)

- Considered the scope of personal liberty during the Emergency. This judgment has since been widely criticized and effectively overruled by later decisions.

Maneka Gandhi v. Union of India (1978)

- Expanded procedural fairness under Article 21, influencing the interpretation of Article 22.

D.K. Basu v. State of West Bengal (1997)

- Laid down detailed guidelines to prevent custodial violence and illegal arrests.

Joginder Kumar v. State of Uttar Pradesh (1994)

- Held that arrest should not be made routinely and must be justified.

RELATED ARTICLES:

Article 20

Article 21

Article 32

Article 39A

EXAM NOTES:

- Article 22 applies to both citizens and non-citizens.
- Clauses (1) and (2) do not apply to preventive detention cases and enemy aliens.
- Remember the "24-hour Rule" for producing an arrested person before a Magistrate.
- Preventive detention is preventive, not punitive.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, and Law School examinations.

MEMORY TRICK:

Article 22 = "Arrest + 24 Hours + Lawyer"

Remember:

Arrest



Grounds of Arrest



Lawyer



Magistrate within 24 Hours

FAQ:

Q. Within how many hours must an arrested person be produced before a Magistrate?

A. Within 24 hours, excluding travel time.

Q. Does Article 22 apply to preventive detention?

A. Only partially. Clauses (1) and (2) do not apply, but clauses (4) to (7) provide safeguards.

Q. Can a person consult a lawyer after arrest?

A. Yes. Article 22(1) guarantees the right to consult and be defended by a legal practitioner of one's choice.

Q. What is preventive detention?

A. Preventive detention means detaining a person to prevent them from committing acts that may threaten national security, public order, or other specified interests, rather than punishing them for a past offence.

MCQ 1:

Question:

An arrested person must ordinarily be produced before a Magistrate within:

Options:

A. 12 Hours

B. 24 Hours

C. 48 Hours

D. 72 Hours

Answer:

B

MCQ 2:

Question:

Which landmark case laid down guidelines against custodial violence and illegal arrests?

Options:

A. Maneka Gandhi v. Union of India

B. D.K. Basu v. State of West Bengal

C. Kesavananda Bharati v. State of Kerala

D. Golaknath v. State of Punjab

Answer:

B

SOURCE:

Constitution of India

Article 22

A.K. Gopalan v. State of Madras (1950)

Joginder Kumar v. State of Uttar Pradesh (1994)

D.K. Basu v. State of West Bengal (1997)

Maneka Gandhi v. Union of India (1978)

ARTICLE: 23

TITLE:

Prohibition of Traffic in Human Beings and Forced Labour

LAW:

Constitution of India

TEXT:

Article 23.

(1) Traffic in human beings and begar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with law.

(2) Nothing in this article shall prevent the State from imposing compulsory service for public purposes, and in imposing such service the State shall not make any discrimination on grounds only of religion, race, caste or class or any of them.

SUMMARY:

Article 23 prohibits human trafficking, begar (forced labour without payment), bonded labour, and all similar forms of forced labour. It protects the dignity and freedom of every individual by making such practices punishable by law. The Article applies not only against the State but also against private individuals. However, the State may impose compulsory service for public purposes, provided there is no discrimination based on religion, race, caste, or class.

KEY POINTS:

- Prohibits trafficking in human beings.
- Prohibits begar (forced labour without payment).
- Prohibits bonded labour and other forms of forced labour.

- Applies to both citizens and non-citizens.
- Enforceable against both the State and private individuals.
- Violation is a punishable offence.
- Compulsory public service by the State is permitted if it is non-discriminatory.

IMPORTANT TERMS:

Human Trafficking

Forced Labour

Begar

Bonded Labour

Compulsory Service

Human Dignity

Labour Rights

Exploitation

LANDMARK CASES:

People's Union for Democratic Rights v. Union of India (1982) (Asiad Workers Case)

- The Supreme Court held that payment of wages below the statutory minimum wage amounts to forced labour under Article 23.

Bandhua Mukti Morcha v. Union of India (1984)

- The Supreme Court recognized bonded labour as a violation of Article 23 and directed the State to identify, release, and rehabilitate bonded labourers.

Sanjit Roy v. State of Rajasthan (1983)

- Held that even persons employed under famine relief programmes must receive at least the minimum wage.

Neeraja Chaudhary v. State of Madhya Pradesh (1984)

- Emphasized the rehabilitation of freed bonded labourers as a constitutional obligation.

RELATED ARTICLES:

Article 21

Article 24

Article 39

Article 39A

Article 42

Article 43

EXAM NOTES:

- Article 23 is a Fundamental Right against exploitation.
- Applies to both citizens and foreigners.
- It is enforceable against private individuals as well as the State.
- Minimum wages are closely connected with Article 23.
- The Bonded Labour System (Abolition) Act, 1976 was enacted to eliminate bonded labour.
- Frequently asked in UPSC, Judiciary, CLAT, AIBE, SSC, and Law School examinations.

MEMORY TRICK:

Article 23 = "No Trafficking, No Forced Labour"

Remember:

Traffic

+

Begar

+

Bonded Labour

=

Prohibited

FAQ:

Q. Does Article 23 apply only against the Government?

A. No. It applies against both the Government and private individuals.

Q. What is begar?

A. Begar means compelling a person to work without payment.

Q. Is bonded labour prohibited under Article 23?

A. Yes. Bonded labour is considered a form of forced labour and is prohibited.

Q. Can the Government require compulsory public service?

A. Yes. It may impose compulsory service for public purposes, provided there is no discrimination.

MCQ 1:

Question:

Article 23 prohibits:

Options:

A. Human Trafficking

B. Begar

C. Forced Labour

D. All of the Above

Answer:

D

MCQ 2:

Question:

Which landmark judgment held that payment below the minimum wage amounts to forced labour under Article 23?

Options:

A. Maneka Gandhi v. Union of India

B. People's Union for Democratic Rights v. Union of India

C. Kesavananda Bharati v. State of Kerala

D. Golaknath v. State of Punjab

Answer:

B

SOURCE:

Constitution of India

Article 23

People's Union for Democratic Rights v. Union of India (1982)

Bandhua Mukti Morcha v. Union of India (1984)

Sanjit Roy v. State of Rajasthan (1983)

Neeraja Chaudhary v. State of Madhya Pradesh (1984)

ARTICLE: 24

TITLE:

Prohibition of Employment of Children in Factories, etc.

LAW:

Constitution of India

TEXT:

Article 24 prohibits the employment of children below the age of 14 years in factories, mines, or any hazardous employment. It aims to protect children from exploitation and ensure their healthy development.

KEY POINTS:

- Prohibits child labour below 14 years.
- Applies to factories, mines, and hazardous occupations.
- Protects children's health and development.
- Complements Article 21A (Right to Education).

IMPORTANT TERMS:

Child Labour

Hazardous Employment

Factories

Mines

Children's Rights

LANDMARK CASES:

- M.C. Mehta v. State of Tamil Nadu (1996) – Supreme Court issued directions to eliminate child labour.

RELATED ARTICLES:

Article 21A

Article 23

Article 39(e)

Article 39(f)

SOURCE:

Constitution of India

Article 24

ARTICLE: 25

TITLE:

Freedom of Conscience and Free Profession, Practice and Propagation of Religion

LAW:

Constitution of India

TEXT:

Article 25 guarantees every person the freedom of conscience and the right to freely profess, practice, and propagate religion. This right is subject to public order, morality, health, and other Fundamental Rights.

KEY POINTS:

- Freedom of conscience.
- Freedom to profess religion.
- Freedom to practice religion.
- Freedom to propagate religion.
- Subject to reasonable restrictions.

IMPORTANT TERMS:

Religion

Freedom of Conscience

Propagation

Public Order

Morality

LANDMARK CASES:

- Commissioner, Hindu Religious Endowments v. Sri Lakshmindra Thirtha Swamiar (1954) – Defined essential religious practices.
- Rev. Stanislaus v. State of Madhya Pradesh (1977) – Propagation does not include the right to forcibly convert others.

RELATED ARTICLES:

Article 26

Article 27

Article 28

SOURCE:

Constitution of India

Article 25

ARTICLE: 26

TITLE:

Freedom to Manage Religious Affairs

LAW:

Constitution of India

TEXT:

Article 26 gives every religious denomination the right to establish and maintain religious institutions, manage its own religious affairs, own and acquire property, and administer such property according to law. These rights are subject to public order, morality, and health.

KEY POINTS:

- Right to establish religious institutions.
- Right to manage religious affairs.
- Right to own property.
- Right to administer religious property.
- Subject to public order, morality, and health.

IMPORTANT TERMS:

Religious Denomination

Religious Institution

Religious Affairs

Property

Administration

LANDMARK CASES:

- Commissioner, Hindu Religious Endowments v. Sri Lakshmindra Thirtha Swamiar (1954) – Explained the meaning of "religious denomination."
- S.P. Mittal v. Union of India (1983) – Clarified the scope of religious denomination under Article 26.

RELATED ARTICLES:

Article 25

Article 27

Article 28

SOURCE:

Constitution of India

Article 26

ARTICLE: 27

TITLE:

Freedom as to Payment of Taxes for Promotion of Any Particular Religion

LAW:

Constitution of India

TEXT:

Article 27 provides that no person shall be compelled to pay taxes specifically intended for the promotion or maintenance of any particular religion or religious denomination. It ensures that public funds collected through taxation are not used to favor a particular religion.

KEY POINTS:

- Prohibits compulsory taxation for promoting a religion.
- Protects religious neutrality of the State.
- Applies to all persons.
- Supports the principle of secularism.

IMPORTANT TERMS:

Tax

Religion

Religious Denomination

Secularism

LANDMARK CASES:

- Sri Jagannath Ramanuj Das v. State of Orissa (1954) – Distinguished between a tax and a regulatory fee.

RELATED ARTICLES:

Article 25

Article 26

Article 28

SOURCE:

Constitution of India

Article 27

ARTICLE: 28

TITLE:

Freedom as to Attendance at Religious Instruction or Religious Worship in Certain Educational Institutions

LAW:

Constitution of India

TEXT:

Article 28 regulates religious instruction in educational institutions. Institutions wholly funded by the State cannot provide religious instruction. Religious instruction may be allowed in institutions administered under an endowment or trust, and attendance cannot be made compulsory without consent.

KEY POINTS:

- No religious instruction in wholly State-funded institutions.
- Trust-based institutions may provide religious instruction.
- Attendance at religious instruction is voluntary.
- Protects freedom of religion in education.

IMPORTANT TERMS:

Religious Instruction

Educational Institution

State Funding

Consent

LANDMARK CASES:

- Aruna Roy v. Union of India (2002) – Clarified the distinction between value education and religious instruction.

RELATED ARTICLES:

Article 25

Article 26

Article 27

SOURCE:

Constitution of India

Article 28

ARTICLE: 29

TITLE:

Protection of Interests of Minorities

LAW:

Constitution of India

TEXT:

Article 29 protects the cultural, linguistic, and educational rights of minorities. It guarantees the right to conserve language, script, and culture and prohibits denial of admission to State-maintained or State-aided educational institutions on grounds of religion, race, caste, language, or any of them.

KEY POINTS:

- Protects language, script, and culture.
- Safeguards minority interests.

- Prevents discrimination in educational admissions.
- Applies to both minorities and any section of citizens seeking to preserve their culture.

IMPORTANT TERMS:

Minority

Language

Script

Culture

Educational Rights

LANDMARK CASES:

- State of Madras v. Champakam Dorairajan (1951) – Interpreted Article 29(2) and led to the First Constitutional Amendment.

RELATED ARTICLES:

Article 15

Article 30

Article 350A

SOURCE:

Constitution of India

Article 29

ARTICLE: 30

TITLE:

Right of Minorities to Establish and Administer Educational Institutions

LAW:

Constitution of India

TEXT:

Article 30 grants religious and linguistic minorities the right to establish and administer educational institutions of their choice. The State shall not discriminate against minority educational institutions while granting aid solely because they are managed by a minority.

KEY POINTS:

- Protects religious and linguistic minorities.
- Right to establish educational institutions.
- Right to administer educational institutions.
- State cannot discriminate in granting aid.

IMPORTANT TERMS:

Minority

Educational Institution

Administration

Religious Minority

Linguistic Minority

LANDMARK CASES:

- T.M.A. Pai Foundation v. State of Karnataka (2002) – Defined the scope of minority educational rights.
- P.A. Inamdar v. State of Maharashtra (2005) – Clarified the autonomy of private minority educational institutions.

RELATED ARTICLES:

Article 29

Article 21A

SOURCE:

Constitution of India

Article 30

ARTICLE: 31A

TITLE:

Saving of Laws Providing for Acquisition of Estates and Certain Other Laws

LAW:

Constitution of India

TEXT:

Article 31A protects certain laws related to land reforms, acquisition of estates, and similar measures from being challenged on the ground of violating Fundamental Rights under Articles 14 and 19. It was introduced to facilitate agrarian reforms.

KEY POINTS:

- Protects land reform laws.
- Covers acquisition of estates.
- Supports agrarian reforms.
- Restricts judicial challenge on specified Fundamental Rights.

IMPORTANT TERMS:

Land Reforms

Estate

Agrarian Reform

Acquisition

Judicial Review

LANDMARK CASES:

- Waman Rao v. Union of India (1981) – Examined constitutional protection under Article 31A.
- Kesavananda Bharati v. State of Kerala (1973) – Discussed Article 31A in relation to the Basic Structure Doctrine.

RELATED ARTICLES:

Article 31B

Article 31C

Article 300A

SOURCE:

Constitution of India

Article 31A

ARTICLE: 31B

TITLE:

Validation of Certain Acts and Regulations

LAW:

Constitution of India

TEXT:

Article 31B protects laws included in the Ninth Schedule from being declared invalid on the ground that they violate Fundamental Rights. However, laws inserted into the Ninth

Schedule after 24 April 1973 are subject to judicial review if they damage the Basic Structure of the Constitution.

KEY POINTS:

- Protects laws listed in the Ninth Schedule.
- Limits challenges based on Fundamental Rights.
- Subject to the Basic Structure Doctrine.
- Introduced through the First Constitutional Amendment.

IMPORTANT TERMS:

Ninth Schedule

Judicial Review

Basic Structure

Constitutional Amendment

LANDMARK CASES:

- I.R. Coelho v. State of Tamil Nadu (2007) – Held that Ninth Schedule laws are subject to Basic Structure review.
- Kesavananda Bharati v. State of Kerala (1973) – Introduced the Basic Structure Doctrine.

RELATED ARTICLES:

Article 31A

Article 31C

Article 368

SOURCE:

Constitution of India

Article 31B

ARTICLE: 31C

TITLE:

Saving of Laws Giving Effect to Certain Directive Principles

LAW:

Constitution of India

TEXT:

Article 31C protects laws enacted to implement the Directive Principles contained in Article 39(b) and Article 39(c). Such laws cannot be challenged for violating Articles 14 or 19. The extension of Article 31C to all Directive Principles by the 42nd Constitutional Amendment was struck down by the Supreme Court.

KEY POINTS:

- Protects laws implementing Article 39(b) and 39(c).
- Restricts challenges under Articles 14 and 19.
- Promotes social and economic justice.
- Extension to all Directive Principles was declared unconstitutional.

IMPORTANT TERMS:

Directive Principles

Article 39

Basic Structure

Social Justice

LANDMARK CASES:

- Kesavananda Bharati v. State of Kerala (1973) – Upheld Article 31C only for Article 39(b) and (c).

- Minerva Mills v. Union of India (1980) – Struck down the expansion of Article 31C made by the 42nd Constitutional Amendment.

RELATED ARTICLES:

Article 14

Article 19

Article 39

Article 31A

Article 31B

SOURCE:

Constitution of India

Article 31C

ARTICLE: 32

TITLE:

Right to Constitutional Remedies

LAW:

Constitution of India

TEXT:

Article 32 guarantees every person the right to approach the Supreme Court for the enforcement of Fundamental Rights. The Supreme Court may issue writs including Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo Warranto. Dr. B.R. Ambedkar described Article 32 as the "Heart and Soul of the Constitution."

KEY POINTS:

- Guarantees the Right to Constitutional Remedies.

- Empowers the Supreme Court to enforce Fundamental Rights.
- Supreme Court can issue five constitutional writs.
- It is itself a Fundamental Right.
- Cannot generally be suspended except as provided by the Constitution.

IMPORTANT TERMS:

Constitutional Remedies

Supreme Court

Writ Jurisdiction

Habeas Corpus

Mandamus

Certiorari

Prohibition

Quo Warranto

LANDMARK CASES:

- Romesh Thappar v. State of Madras (1950) – Strengthened the enforcement of Fundamental Rights.
- Bandhua Mukti Morcha v. Union of India (1984) – Expanded Public Interest Litigation under Article 32.
- S.P. Gupta v. Union of India (1981) – Liberalized locus standi and promoted PIL.

RELATED ARTICLES:

Article 226

Article 13

Article 21

SOURCE:

Constitution of India

Article 32

ARTICLE: 33

TITLE:

Power of Parliament to Modify the Rights Conferred by this Part in their Application to Forces, etc.

LAW:

Constitution of India

TEXT:

Article 33 empowers Parliament to restrict or modify the Fundamental Rights of members of the Armed Forces, Police Forces, Intelligence Organizations, and similar services to ensure proper discharge of duties, discipline, and national security.

KEY POINTS:

- Parliament may restrict Fundamental Rights.
- Applies to Armed Forces.
- Applies to Police Forces.
- Applies to Intelligence and Security Organizations.
- Ensures discipline and national security.

IMPORTANT TERMS:

Armed Forces

Police

National Security

Discipline

Fundamental Rights

LANDMARK CASES:

- Ous Kutilingal Achudan Nair v. Union of India (1969) – Upheld Parliament's power under Article 33.

RELATED ARTICLES:

Article 19

Article 32

Article 34

SOURCE:

Constitution of India

Article 33

ARTICLE: 34

TITLE:

Restriction on Rights Conferred by this Part While Martial Law is in Force in Any Area

LAW:

Constitution of India

TEXT:

Article 34 empowers Parliament to indemnify any person for acts done in connection with the maintenance or restoration of order in areas where Martial Law has been in force. It also permits Parliament to validate actions taken during such periods.

KEY POINTS:

- Applies only during Martial Law.
- Parliament may indemnify officials.

- Protects actions taken to restore public order.
- Enables validation of actions during Martial Law.

IMPORTANT TERMS:

Martial Law

Indemnity

Public Order

Parliament

Military Authority

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 34.

RELATED ARTICLES:

Article 33

Article 352

Article 356

SOURCE:

Constitution of India

Article 34

ARTICLE: 35

TITLE:

Legislation to Give Effect to the Provisions of this Part

LAW:

Constitution of India

TEXT:

Article 35 empowers Parliament to make laws relating to matters specified in certain Fundamental Rights, including Articles 16(3), 32(3), 33 and 34. It also gives Parliament exclusive power to prescribe punishment for offences under Part III where required by the Constitution.

KEY POINTS:

- Parliament has exclusive legislative power.
- Implements specific Fundamental Rights.
- Prescribes punishment for constitutional offences.
- Ensures uniformity across India.

IMPORTANT TERMS:

Parliament

Legislation

Fundamental Rights

Constitutional Offence

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 35.

RELATED ARTICLES:

Article 16

Article 32

Article 33

Article 34

SOURCE:

Constitution of India

Article 35

ARTICLE: 36

TITLE:

Definition

LAW:

Constitution of India

TEXT:

Article 36 defines the term "State" for the purposes of Part IV (Directive Principles of State Policy). The meaning of "State" is the same as that provided under Article 12 of the Constitution.

KEY POINTS:

- Defines "State" for Part IV.
- Refers to the definition under Article 12.
- Applies to Directive Principles of State Policy.
- Ensures consistency in constitutional interpretation.

IMPORTANT TERMS:

State

Directive Principles

Article 12

Part IV

LANDMARK CASES:

- Rajasthan State Electricity Board v. Mohan Lal (1967) – Helped interpret the meaning of "State" under Article 12, which also applies to Article 36.

RELATED ARTICLES:

Article 12

Article 37

SOURCE:

Constitution of India

Article 36

ARTICLE: 37

TITLE:

Application of the Principles Contained in this Part

LAW:

Constitution of India

TEXT:

Article 37 states that the Directive Principles of State Policy (DPSPs) are not enforceable by any court. However, they are fundamental in the governance of the country, and it is the duty of the State to apply these principles while making laws and policies.

KEY POINTS:

- DPSPs are not enforceable by courts.
- Fundamental in the governance of the country.
- State must apply them while making laws.

- Promote social and economic welfare.

IMPORTANT TERMS:

Directive Principles

Governance

State Policy

Non-Justiciable

LANDMARK CASES:

- *Minerva Mills v. Union of India* (1980) – Emphasized harmony between Fundamental Rights and Directive Principles.

RELATED ARTICLES:

Article 36

Article 38

Article 39

SOURCE:

Constitution of India

Article 37

ARTICLE: 38

TITLE:

State to Secure a Social Order for the Promotion of Welfare of the People

LAW:

Constitution of India

TEXT:

Article 38 directs the State to promote the welfare of the people by securing a social order based on justice—social, economic, and political. It also requires the State to minimize inequalities in income, status, facilities, and opportunities.

KEY POINTS:

- Promote welfare of the people.
- Ensure social, economic, and political justice.
- Reduce inequalities.
- Promote equal opportunities.

IMPORTANT TERMS:

Social Justice

Economic Justice

Political Justice

Welfare State

Equality

LANDMARK CASES:

- *Minerva Mills v. Union of India* (1980) – Highlighted the importance of Directive Principles in achieving social justice.

RELATED ARTICLES:

Article 37

Article 39

Article 46

SOURCE:

Constitution of India

Article 38

ARTICLE: 39

TITLE:

Certain Principles of Policy to be Followed by the State

LAW:

Constitution of India

TEXT:

Article 39 directs the State to formulate policies ensuring adequate livelihood, equitable distribution of resources, prevention of concentration of wealth, equal pay for equal work, protection of workers, and opportunities for healthy development of children.

KEY POINTS:

- Adequate means of livelihood.
- Equal pay for equal work.
- Prevent concentration of wealth.
- Protect workers.
- Protect children.
- Fair distribution of resources.

IMPORTANT TERMS:

Livelihood

Equal Pay

Economic Justice

Workers

Children

Resources

LANDMARK CASES:

- Randhir Singh v. Union of India (1982) – Recognized equal pay for equal work.
- Minerva Mills v. Union of India (1980) – Strengthened the role of Directive Principles.

RELATED ARTICLES:

Article 31C

Article 38

Article 39A

Article 41

SOURCE:

Constitution of India

Article 39

ARTICLE: 39A

TITLE:

Equal Justice and Free Legal Aid

LAW:

Constitution of India

TEXT:

Article 39A directs the State to ensure equal justice and provide free legal aid so that no person is denied access to justice because of economic or other disabilities.

KEY POINTS:

- Equal justice for all.
- Free legal aid.
- Equal access to courts.
- Protect economically weaker sections.

IMPORTANT TERMS:

Legal Aid

Equal Justice

Access to Justice

Legal Services

LANDMARK CASES:

- Hussainara Khatoon v. State of Bihar (1979) – Recognized free legal aid as part of Article 21.
- Khatri v. State of Bihar (1981) – Legal aid must be provided to indigent accused persons.

RELATED ARTICLES:

Article 21

Article 32

Article 41

SOURCE:

Constitution of India

Article 39A

ARTICLE: 40

TITLE:

Organisation of Village Panchayats

LAW:

Constitution of India

TEXT:

Article 40 directs the State to organize Village Panchayats and empower them as units of local self-government. This principle laid the foundation for the Panchayati Raj system in India.

KEY POINTS:

- Promote Village Panchayats.
- Encourage local self-government.
- Decentralization of administration.
- Strengthen rural governance.

IMPORTANT TERMS:

Village Panchayat

Local Self-Government

Panchayati Raj

Decentralization

LANDMARK CASES:

- Kishansing Tomar v. Municipal Corporation of Ahmedabad (2006) – Emphasized the importance of democratic local governance.

RELATED ARTICLES:

Article 243

Article 243A

Article 243B

SOURCE:

Constitution of India

Article 40

ARTICLE: 41

TITLE:

Right to Work, to Education and to Public Assistance in Certain Cases

LAW:

Constitution of India

TEXT:

Article 41 directs the State to make effective provisions for securing the right to work, education, and public assistance in cases of unemployment, old age, sickness, disability, and other undeserved circumstances, within the limits of its economic capacity.

KEY POINTS:

- Right to work.
- Right to education.
- Public assistance.
- Applies subject to State's economic capacity.

IMPORTANT TERMS:

Right to Work

Education

Public Assistance

Unemployment

Disability

LANDMARK CASES:

- Olga Tellis v. Bombay Municipal Corporation (1985) – Recognized the Right to Livelihood.
- Unni Krishnan v. State of Andhra Pradesh (1993) – Right to Education.

RELATED ARTICLES:

Article 21

Article 21A

Article 39

Article 39A

SOURCE:

Constitution of India

Article 41

ARTICLE: 42

TITLE:

Provision for Just and Humane Conditions of Work and Maternity Relief

LAW:

Constitution of India

TEXT:

Article 42 directs the State to ensure just and humane conditions of work and to provide maternity relief for women workers.

KEY POINTS:

- Humane working conditions.
- Maternity relief.
- Welfare of workers.
- Protection of women employees.

IMPORTANT TERMS:

Labour Welfare

Maternity Relief

Working Conditions

Women Workers

LANDMARK CASES:

- Municipal Corporation of Delhi v. Female Workers (Muster Roll) (2000) – Extended maternity benefits to daily wage workers.

RELATED ARTICLES:

Article 39

Article 43

Article 43A

SOURCE:

Constitution of India

Article 42

ARTICLE: 43

TITLE:

Living Wage, etc., for Workers

LAW:

Constitution of India

TEXT:

Article 43 directs the State to secure a living wage, decent working conditions, and a satisfactory standard of life for workers. It also encourages the promotion of cottage industries in rural areas.

KEY POINTS:

- Living wage.
- Decent standard of life.
- Leisure and social opportunities.
- Promotion of cottage industries.

IMPORTANT TERMS:

Living Wage

Workers

Cottage Industries

Labour Welfare

LANDMARK CASES:

- Bijay Cotton Mills Ltd. v. State of Ajmer (1955) – Discussed the concept of living wage.

RELATED ARTICLES:

Article 39

Article 42

Article 43A

SOURCE:

Constitution of India

Article 43

ARTICLE: 43A

TITLE:

Participation of Workers in Management of Industries

LAW:

Constitution of India

TEXT:

Article 43A directs the State to take suitable steps to ensure the participation of workers in the management of industries. It was inserted by the 42nd Constitutional Amendment Act, 1976.

KEY POINTS:

- Worker participation.
- Industrial management.
- Industrial democracy.
- Added by the 42nd Amendment.

IMPORTANT TERMS:

Industrial Democracy

Workers

Management

Industry

LANDMARK CASES:

- National Textile Workers' Union v. P.R. Ramakrishnan (1983) – Recognized workers' participation in industrial matters.

RELATED ARTICLES:

Article 42

Article 43

Article 43B

SOURCE:

Constitution of India

Article 43A

ARTICLE: 43B

TITLE:

Promotion of Co-operative Societies

LAW:

Constitution of India

TEXT:

Article 43B directs the State to promote voluntary formation, autonomous functioning, democratic control, and professional management of co-operative societies. It was inserted by the 97th Constitutional Amendment Act, 2011.

KEY POINTS:

- Promote co-operative societies.
- Democratic management.

- Autonomous functioning.
- Professional administration.

IMPORTANT TERMS:

Co-operative Society

Democratic Control

Autonomy

97th Constitutional Amendment

LANDMARK CASES:

- Union of India v. Rajendra N. Shah (2021) – The Supreme Court partly struck down the 97th Constitutional Amendment concerning State co-operative societies.

RELATED ARTICLES:

Article 19(1)(c)

Article 43A

SOURCE:

Constitution of India

Article 43B

ARTICLE: 44

TITLE:

Uniform Civil Code for the Citizens

LAW:

Constitution of India

TEXT:

Article 44 directs the State to endeavor to secure a Uniform Civil Code (UCC) for all citizens throughout the territory of India. The objective is to establish uniform personal laws relating to matters such as marriage, divorce, inheritance, and adoption, irrespective of religion.

KEY POINTS:

- Uniform Civil Code (UCC).
- Common personal laws.
- Promotes national integration.
- Directive Principle of State Policy.

IMPORTANT TERMS:

Uniform Civil Code

Personal Law

Marriage

Inheritance

Secularism

LANDMARK CASES:

- Mohd. Ahmed Khan v. Shah Bano Begum (1985) – Emphasized the need for a Uniform Civil Code.
- Sarla Mudgal v. Union of India (1995) – Reiterated the importance of implementing a Uniform Civil Code.

RELATED ARTICLES:

Article 14

Article 15

Article 25

SOURCE:

Constitution of India

Article 44

ARTICLE: 45

TITLE:

Provision for Early Childhood Care and Education

LAW:

Constitution of India

TEXT:

Article 45 directs the State to provide early childhood care and education for all children until they complete the age of six years. This provision was substituted by the Constitution (Eighty-sixth Amendment) Act, 2002.

KEY POINTS:

- Early childhood care.
- Education up to six years.
- Welfare of children.
- Supports child development.

IMPORTANT TERMS:

Early Childhood Care

Education

Children

86th Constitutional Amendment

LANDMARK CASES:

- Unni Krishnan v. State of Andhra Pradesh (1993) – Influenced constitutional recognition of children's education.

RELATED ARTICLES:

Article 21A

Article 39(f)

Article 47

SOURCE:

Constitution of India

Article 45

ARTICLE: 46

TITLE:

Promotion of Educational and Economic Interests of Scheduled Castes, Scheduled Tribes and Other Weaker Sections

LAW:

Constitution of India

TEXT:

Article 46 directs the State to promote the educational and economic interests of Scheduled Castes (SCs), Scheduled Tribes (STs), and other weaker sections of society and protect them from social injustice and exploitation.

KEY POINTS:

- Welfare of SCs.
- Welfare of STs.
- Protection of weaker sections.

- Prevent social exploitation.

IMPORTANT TERMS:

Scheduled Castes

Scheduled Tribes

Weaker Sections

Social Justice

LANDMARK CASES:

- State of Kerala v. N.M. Thomas (1976) – Supported affirmative action for disadvantaged communities.
- Indra Sawhney v. Union of India (1992) – Reservation for backward classes.

RELATED ARTICLES:

Article 15

Article 16

Article 338

Article 338A

SOURCE:

Constitution of India

Article 46

ARTICLE: 47

TITLE:

Duty of the State to Raise the Level of Nutrition and the Standard of Living and to Improve Public Health

LAW:

Constitution of India

TEXT:

Article 47 directs the State to improve nutrition, raise the standard of living, improve public health, and endeavor to prohibit the consumption of intoxicating drinks and drugs harmful to health except for medicinal purposes.

KEY POINTS:

- Improve nutrition.
- Improve public health.
- Raise standard of living.
- Prohibit harmful intoxicants.

IMPORTANT TERMS:

Nutrition

Public Health

Standard of Living

Prohibition

Intoxicants

LANDMARK CASES:

- State of Bombay v. F.N. Balsara (1951) – Upheld prohibition laws in the interest of public health.

RELATED ARTICLES:

Article 21

Article 39

Article 45

SOURCE:

Constitution of India

Article 47

ARTICLE: 48

TITLE:

Organisation of Agriculture and Animal Husbandry

LAW:

Constitution of India

TEXT:

Article 48 directs the State to organize agriculture and animal husbandry on modern and scientific lines. It also requires the preservation and improvement of breeds and prohibits the slaughter of cows, calves, and other milch and draught cattle.

KEY POINTS:

- Scientific agriculture.
- Scientific animal husbandry.
- Improve cattle breeds.
- Protect milch and draught cattle.

IMPORTANT TERMS:

Agriculture

Animal Husbandry

Cattle

Scientific Farming

LANDMARK CASES:

- State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat (2005) – Upheld restrictions on cow slaughter.

RELATED ARTICLES:

Article 48A

Article 51A(g)

SOURCE:

Constitution of India

Article 48

ARTICLE: 48A

TITLE:

Protection and Improvement of Environment and Safeguarding of Forests and Wildlife

LAW:

Constitution of India

TEXT:

Article 48A directs the State to protect and improve the environment and to safeguard the forests and wildlife of the country. It was inserted by the Constitution (Forty-second Amendment) Act, 1976.

KEY POINTS:

- Protect the environment.
- Improve environmental quality.
- Safeguard forests.
- Protect wildlife.
- Added by the 42nd Constitutional Amendment.

IMPORTANT TERMS:

Environment

Forests

Wildlife

Ecology

Conservation

LANDMARK CASES:

- M.C. Mehta v. Union of India (1987) – Strengthened environmental protection.
- Rural Litigation and Entitlement Kendra v. State of Uttar Pradesh (1985) – Protection of ecology.

RELATED ARTICLES:

Article 21

Article 47

Article 51A(g)

SOURCE:

Constitution of India

Article 48A

ARTICLE: 49

TITLE:

Protection of Monuments and Places and Objects of National Importance

LAW:

Constitution of India

TEXT:

Article 49 directs the State to protect every monument, place, or object of artistic or historic importance declared by Parliament to be of national importance from damage, destruction, removal, or misuse.

KEY POINTS:

- Protect national monuments.
- Preserve historical heritage.
- Protect archaeological sites.
- Prevent damage and misuse.

IMPORTANT TERMS:

National Monument

Archaeology

Heritage

Historic Place

Conservation

LANDMARK CASES:

- Archaeological Survey of India v. State of Madhya Pradesh (Various Decisions) – Preservation of protected monuments.

RELATED ARTICLES:

Article 51A(f)

SOURCE:

Constitution of India

Article 49

ARTICLE: 50

TITLE:

Separation of Judiciary from Executive

LAW:

Constitution of India

TEXT:

Article 50 directs the State to separate the judiciary from the executive in the public services of the State. Its objective is to ensure judicial independence and impartial administration of justice.

KEY POINTS:

- Separation of judiciary and executive.
- Judicial independence.
- Fair administration of justice.
- Strengthens Rule of Law.

IMPORTANT TERMS:

Judiciary

Executive

Judicial Independence

Rule of Law

LANDMARK CASES:

- State of Bihar v. Bal Mukund Shah (2000) – Reaffirmed judicial independence.
- All India Judges' Association v. Union of India (1992) – Strengthened the independence and conditions of the judiciary.

RELATED ARTICLES:

Article 32

Article 124

Article 214

SOURCE:

Constitution of India

Article 50

ARTICLE: 51

TITLE:

Promotion of International Peace and Security

LAW:

Constitution of India

TEXT:

Article 51 directs the State to promote international peace and security, maintain just and honorable relations among nations, respect international law and treaty obligations, and encourage settlement of international disputes through arbitration.

KEY POINTS:

- Promote international peace.
- Respect international law.
- Encourage arbitration.
- Maintain friendly international relations.

IMPORTANT TERMS:

International Peace

International Law

Treaties

Arbitration

Diplomacy

LANDMARK CASES:

- Vishaka v. State of Rajasthan (1997) – Recognized the relevance of international conventions in interpreting Fundamental Rights.

RELATED ARTICLES:

Article 253

Article 73

SOURCE:

Constitution of India

Article 51

ARTICLE: 51A

TITLE:

Fundamental Duties

LAW:

Constitution of India

TEXT:

Article 51A specifies the Fundamental Duties of every citizen of India. Originally containing ten duties, one more duty was added by the Constitution (Eighty-sixth Amendment) Act,

2002. These duties promote patriotism, national unity, environmental protection, scientific temper, and responsible citizenship.

KEY POINTS:

- Respect the Constitution and National Symbols.
- Uphold sovereignty, unity, and integrity of India.
- Defend the country.
- Promote harmony and brotherhood.
- Preserve India's cultural heritage.
- Protect the environment.
- Develop scientific temper and humanism.
- Safeguard public property.
- Strive for excellence.
- Provide education to children between 6 and 14 years.

IMPORTANT TERMS:

Fundamental Duties

Citizenship

National Flag

Environment

Scientific Temper

Patriotism

LANDMARK CASES:

- *AIIMS Students' Union v. AIIMS* (2001) – Fundamental Duties help interpret Fundamental Rights.
- *M.C. Mehta v. Union of India* (1988) – Emphasized the duty to protect the environment under Article 51A(g).

RELATED ARTICLES:

Article 21A

Article 48A

Article 51

SOURCE:

Constitution of India

Article 51A

ARTICLE: 52

TITLE:

The President of India

LAW:

Constitution of India

TEXT:

Article 52 provides that there shall be a President of India. The President is the constitutional Head of the Union Executive and the First Citizen of India.

KEY POINTS:

- Provides for the office of the President.
- President is the Head of the Union Executive.
- President is the First Citizen of India.
- Constitutional Head of the Government.

IMPORTANT TERMS:

President

Union Executive

Head of State

First Citizen

LANDMARK CASES:

- Shamsher Singh v. State of Punjab (1974) – President acts on the aid and advice of the Council of Ministers.

RELATED ARTICLES:

Article 53

Article 54

Article 74

SOURCE:

Constitution of India

Article 52

ARTICLE: 53

TITLE:

Executive Power of the Union

LAW:

Constitution of India

TEXT:

Article 53 provides that the executive power of the Union shall be vested in the President and shall be exercised either directly or through officers subordinate to him in accordance with the Constitution.

KEY POINTS:

- Executive power vested in the President.
- Exercised according to the Constitution.
- Can be exercised through subordinate officers.
- Subject to constitutional provisions.

IMPORTANT TERMS:

Executive Power

President

Union Government

Constitution

LANDMARK CASES:

- Ram Jawaya Kapur v. State of Punjab (1955) – Explained the scope of executive power.
- Shamsher Singh v. State of Punjab (1974) – President exercises powers on ministerial advice.

RELATED ARTICLES:

Article 52

Article 73

Article 74

SOURCE:

Constitution of India

Article 53

ARTICLE: 54

TITLE:

Election of President

LAW:

Constitution of India

TEXT:

Article 54 provides that the President shall be elected by an Electoral College consisting of the elected members of both Houses of Parliament and the elected members of the Legislative Assemblies of the States and certain Union Territories.

KEY POINTS:

- President is elected indirectly.
- Electoral College conducts the election.
- Includes elected MPs.
- Includes elected MLAs.
- Nominated members do not participate.

IMPORTANT TERMS:

Electoral College

President

Parliament

Legislative Assembly

Election

LANDMARK CASES:

- In Re Presidential Election (1974) – Clarified issues relating to the Presidential election process.

RELATED ARTICLES:

Article 55

Article 56

Article 71

SOURCE:

Constitution of India

Article 54

ARTICLE: 55

TITLE:

Manner of Election of President

LAW:

Constitution of India

TEXT:

Article 55 lays down the procedure for the election of the President. The election is conducted by proportional representation through the single transferable vote, and voting is by secret ballot to ensure uniformity in representation among the States.

KEY POINTS:

- Proportional Representation.
- Single Transferable Vote (STV).
- Secret Ballot.
- Uniform representation of States.

IMPORTANT TERMS:

Single Transferable Vote

Secret Ballot

Proportional Representation

Electoral College

LANDMARK CASES:

- Charan Lal Sahu v. Neelam Sanjiva Reddy (1978) – Discussed aspects of Presidential elections.

RELATED ARTICLES:

Article 54

Article 56

Article 71

SOURCE:

Constitution of India

Article 55

ARTICLE: 56

TITLE:

Term of Office of President

LAW:

Constitution of India

TEXT:

Article 56 provides that the President holds office for a term of five years from the date of entering office. The President may resign by writing addressed to the Vice-President and may continue until a successor assumes office. The President may also be removed through impeachment under the Constitution.

KEY POINTS:

- Term of five years.
- Can resign to the Vice-President.
- Continues until successor assumes office.
- Can be removed by impeachment.

IMPORTANT TERMS:

Term of Office

Resignation

Impeachment

President

Vice-President

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 56.

RELATED ARTICLES:

Article 57

Article 58

Article 61

SOURCE:

Constitution of India

Article 56

ARTICLE: 57

TITLE:

Eligibility for Re-election

LAW:

Constitution of India

TEXT:

Article 57 provides that a person who has held or is holding the office of the President shall be eligible for re-election, subject to the provisions of the Constitution.

KEY POINTS:

- President can be re-elected.
- No limit on the number of terms.
- Re-election is subject to constitutional provisions.

IMPORTANT TERMS:

Re-election

President

Term of Office

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 57.

RELATED ARTICLES:

Article 56

Article 58

Article 71

SOURCE:

Constitution of India

Article 57

ARTICLE: 58

TITLE:

Qualifications for Election as President

LAW:

Constitution of India

TEXT:

Article 58 lays down the qualifications for election as the President of India. A person must be a citizen of India, have completed the age of 35 years, be qualified for election as a member of the House of the People (Lok Sabha), and must not hold any office of profit under the Government.

KEY POINTS:

- Must be an Indian citizen.
- Minimum age: 35 years.
- Must be qualified to become a Lok Sabha member.
- Must not hold an office of profit.

IMPORTANT TERMS:

Qualifications

Citizen

Lok Sabha

Office of Profit

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 58.

RELATED ARTICLES:

Article 54

Article 55

Article 59

SOURCE:

Constitution of India

Article 58

ARTICLE: 59

TITLE:

Conditions of President's Office

LAW:

Constitution of India

TEXT:

Article 59 specifies the conditions of the President's office. The President shall not be a member of Parliament or a State Legislature, shall not hold any other office of profit, and is entitled to the official residence, emoluments, and allowances as determined by Parliament.

KEY POINTS:

- Cannot be a Member of Parliament or State Legislature.
- Cannot hold any other office of profit.
- Entitled to official residence.
- Receives salary, allowances, and privileges.

IMPORTANT TERMS:

Office of Profit

Emoluments

Official Residence

President

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 59.

RELATED ARTICLES:

Article 58

Article 60

Article 61

SOURCE:

Constitution of India

Article 59

ARTICLE: 60

TITLE:

Oath or Affirmation by the President

LAW:

Constitution of India

TEXT:

Article 60 provides that before entering office, the President shall take an oath or affirmation before the Chief Justice of India, or in his absence, the senior-most Judge of the Supreme

Court available. The oath includes preserving, protecting, and defending the Constitution and serving the people of India.

KEY POINTS:

- Oath before assuming office.
- Administered by the Chief Justice of India.
- Protect and defend the Constitution.
- Serve the people of India.

IMPORTANT TERMS:

Oath

Affirmation

Chief Justice of India

Constitution

LANDMARK CASES:

- No major Supreme Court judgment exclusively interpreting Article 60.

RELATED ARTICLES:

Article 52

Article 61

SOURCE:

Constitution of India

Article 60

ARTICLE: 61

TITLE:

Procedure for Impeachment of the President

LAW:

Constitution of India

TEXT:

Article 61 provides the procedure for impeachment of the President for violation of the Constitution. Either House of Parliament may initiate the impeachment process by giving at least 14 days' notice. The charge must be passed by a two-thirds majority of the total membership of each House.

KEY POINTS:

- President can be impeached for violation of the Constitution.
- Either House of Parliament may initiate proceedings.
- Minimum 14 days' written notice.
- Requires a two-thirds majority of the total membership of each House.

IMPORTANT TERMS:

Impeachment

Parliament

Violation of Constitution

Special Majority

LANDMARK CASES:

- No President of India has been impeached; therefore, no landmark Supreme Court judgment exists exclusively on Article 61.

RELATED ARTICLES:

Article 56

Article 60

Article 71

SOURCE:

Constitution of India

Article 61

ARTICLE: 72

TITLE:

Power of President to Grant Pardons

TEXT:

Article 72 empowers the President to grant pardons, reprieves, respites, remissions, suspend, remit, or commute sentences in certain cases, including death sentences, court-martial cases, and offences under Union laws.

KEY POINTS:

- Power of pardon
- Death sentence cases
- Court-martial cases
- Union law offences

KEYWORDS:

President, Pardon, Mercy Petition, Death Sentence, Court-Martial

LANDMARK CASES:

- Kehar Singh v. Union of India (1989)
- Epuru Sudhakar v. Government of Andhra Pradesh (2006)

RELATED:

53,161

SOURCE:

Constitution of India

ARTICLE: 74

TITLE:

Council of Ministers to Aid and Advise the President

TEXT:

Article 74 provides that there shall be a Council of Ministers headed by the Prime Minister to aid and advise the President. The President acts according to such advice, subject to constitutional provisions.

KEY POINTS:

- Council of Ministers
- Prime Minister
- Aid and Advice
- Constitutional Executive

KEYWORDS:

President, Prime Minister, Council of Ministers, Advice

LANDMARK CASES:

- Shamsher Singh v. State of Punjab (1974)

RELATED:

53,75,78

SOURCE:

Constitution of India

ARTICLE: 75

TITLE:

Other Provisions as to Ministers

TEXT:

Article 75 deals with the appointment, tenure, salaries, collective responsibility, and oath of Ministers. Ministers are appointed by the President on the advice of the Prime Minister and are collectively responsible to the Lok Sabha.

KEY POINTS:

- Appointment of Ministers
- Collective Responsibility
- Oath of Office
- Tenure of Ministers

KEYWORDS:

Prime Minister, Ministers, Collective Responsibility, Lok Sabha

LANDMARK CASES:

- S.R. Bommai v. Union of India (1994)

RELATED:

74,77,78

SOURCE:

Constitution of India

ARTICLE: 79

TITLE:

Constitution of Parliament

TEXT:

Article 79 provides that Parliament consists of the President, the Council of States (Rajya Sabha), and the House of the People (Lok Sabha).

KEY POINTS:

- Parliament of India
- President
- Rajya Sabha
- Lok Sabha

KEYWORDS:

Parliament, Lok Sabha, Rajya Sabha, President

LANDMARK CASES:

None

RELATED:

80,81,85

SOURCE:

Constitution of India

ARTICLE: 80

TITLE:

Composition of the Council of States

TEXT:

Article 80 provides for the composition of the Rajya Sabha. Members are elected by the elected members of State Legislative Assemblies through proportional representation using the single transferable vote. The President may nominate distinguished persons with special knowledge in literature, science, art, and social service.

KEY POINTS:

- Composition of Rajya Sabha
- Elected Members
- Nominated Members
- Single Transferable Vote

KEYWORDS:

Rajya Sabha, Parliament, Nomination, STV

LANDMARK CASES:

None

RELATED:

79,81

SOURCE:

Constitution of India

ARTICLE: 81

TITLE:

Composition of the House of the People

TEXT:

Article 81 provides for the composition of the Lok Sabha. Members are directly elected by the people from territorial constituencies through universal adult suffrage. The number of seats is determined in accordance with constitutional provisions.

KEY POINTS:

- Composition of Lok Sabha
- Direct Election
- Territorial Constituencies
- Universal Adult Suffrage

KEYWORDS:

Lok Sabha, Election, Constituencies, Parliament

LANDMARK CASES:

None

RELATED:

79,80,82,326

ARTICLE: 85

TITLE:

Sessions of Parliament, Prorogation and Dissolution

TEXT:

Article 85 empowers the President to summon each House of Parliament, prorogue either House, and dissolve the Lok Sabha. The gap between two sessions of Parliament shall not exceed six months.

KEY POINTS:

- Summoning Parliament
- Prorogation
- Dissolution of Lok Sabha
- Six-month Rule

KEYWORDS:

Parliament, Session, President, Prorogation, Dissolution

LANDMARK CASES:

- Nabam Rebia v. Deputy Speaker (2016)

RELATED:

79,83,86

ARTICLE: 100

TITLE:

Voting in Houses and Power of Houses to Act

TEXT:

Article 100 provides that questions in either House of Parliament shall be decided by a majority of members present and voting. The presiding officer has a casting vote in the event of a tie.

KEY POINTS:

- Majority Voting
- Quorum
- Casting Vote
- Decision Making

KEYWORDS:

Voting, Parliament, Quorum, Speaker, Chairman

LANDMARK CASES:

None

RELATED:

99,101,118

ARTICLE: 105

TITLE:

Powers, Privileges and Immunities of Parliament and its Members

TEXT:

Article 105 grants freedom of speech in Parliament and provides powers, privileges, and immunities to each House of Parliament, its members, and committees to ensure independent legislative functioning.

KEY POINTS:

- Freedom of Speech in Parliament
- Parliamentary Privileges
- Immunities
- Legislative Independence

KEYWORDS:

Parliament, Privileges, Immunity, Freedom of Speech

LANDMARK CASES:

- P.V. Narasimha Rao v. State (CBI/SPE) (1998)
- Raja Ram Pal v. Speaker, Lok Sabha (2007)

RELATED:

19,118,122,194

ARTICLE: 110

TITLE:

Definition of Money Bill

TEXT:

Article 110 defines a Money Bill. A Bill is a Money Bill if it exclusively deals with matters such as taxation, borrowing of money, the Consolidated Fund of India, the Contingency Fund, appropriation of money, or related financial matters. The Speaker of the Lok Sabha certifies whether a Bill is a Money Bill.

KEY POINTS:

- Definition of Money Bill
- Speaker's Certification
- Taxation
- Consolidated Fund
- Financial Legislation

KEYWORDS:

Money Bill, Speaker, Taxation, Consolidated Fund, Parliament

LANDMARK CASES:

- K.S. Puttaswamy (Aadhaar) v. Union of India (2018)
- Rojer Mathew v. South Indian Bank Ltd. (2019)

RELATED:

109,111,112,117

ARTICLE: 111

TITLE:

Assent to Bills

TEXT:

Article 111 provides that when a Bill is presented to the President, the President may give assent, withhold assent, or return a Bill (other than a Money Bill) for reconsideration. If the Bill is passed again by Parliament, the President must give assent.

KEY POINTS:

- Presidential Assent
- Return of Ordinary Bill
- Money Bill cannot be returned
- Mandatory assent after reconsideration

KEYWORDS:

President, Assent, Bill, Parliament, Money Bill

LANDMARK CASES:

None

RELATED:

109,110,123

ARTICLE: 123

TITLE:

Power of President to Promulgate Ordinances

TEXT:

Article 123 empowers the President to promulgate Ordinances when Parliament is not in session and immediate legislative action is necessary. An Ordinance has the same force as an Act of Parliament but must be approved by Parliament within six weeks of its reassembly.

KEY POINTS:

- Ordinance Making Power
- Parliament not in session
- Immediate action
- Valid for six weeks after reassembly

KEYWORDS:

Ordinance, President, Parliament, Emergency Legislation

LANDMARK CASES:

- D.C. Wadhwa v. State of Bihar (1987)
- Krishna Kumar Singh v. State of Bihar (2017)

RELATED:

74,111,213

ARTICLE: 124

TITLE:

Establishment and Constitution of the Supreme Court

TEXT:

Article 124 establishes the Supreme Court of India. It provides for the appointment of the Chief Justice of India and other Judges by the President and lays down their qualifications, tenure, and removal.

KEY POINTS:

- Establishes Supreme Court
- Appointment of Judges
- Qualifications
- Removal by impeachment

KEYWORDS:

Supreme Court, Chief Justice, Judges, Appointment, Impeachment

LANDMARK CASES:

- Supreme Court Advocates-on-Record Association v. Union of India (1993)
- Supreme Court Advocates-on-Record Association v. Union of India (2015) (NJAC Case)

RELATED:

125,126,127,128,217

ARTICLE: 136

TITLE:

Special Leave to Appeal by the Supreme Court

TEXT:

Article 136 empowers the Supreme Court to grant Special Leave to Appeal (SLP) against any judgment, decree, determination, sentence, or order passed by any court or tribunal in India, except those relating to the Armed Forces.

KEY POINTS:

- Special Leave Petition (SLP)
- Discretionary power
- Appeals from Courts and Tribunals
- Excludes Armed Forces Tribunals

KEYWORDS:

SLP, Appeal, Supreme Court, Tribunal, Judiciary

LANDMARK CASES:

- Pritam Singh v. State (1950)
- Kunhayammed v. State of Kerala (2000)

RELATED:

132,133,134,137

ARTICLE: 141

TITLE:

Law Declared by the Supreme Court to be Binding

TEXT:

Article 141 provides that the law declared by the Supreme Court shall be binding on all courts within the territory of India. It ensures uniform interpretation and application of law throughout the country.

KEY POINTS:

- Supreme Court judgments are binding
- Uniform interpretation of law
- Binding precedent
- Applies to all courts

KEYWORDS:

Precedent, Supreme Court, Binding Law, Judiciary

LANDMARK CASES:

- Bengal Immunity Co. Ltd. v. State of Bihar (1955)
- Central Board of Dawoodi Bohra Community v. State of Maharashtra (2005)

RELATED:

136,142,144

ARTICLE: 142

TITLE:

Enforcement of Decrees and Orders of the Supreme Court and Orders as to Discovery, etc.

TEXT:

Article 142 empowers the Supreme Court to pass any decree or order necessary for doing complete justice in any case before it. Such orders are enforceable throughout India.

KEY POINTS:

- Complete Justice
- Extraordinary Powers
- Enforceable Orders
- Nationwide Applicability

KEYWORDS:

Complete Justice, Supreme Court, Decree, Judicial Power

LANDMARK CASES:

- Union Carbide Corporation v. Union of India (1991)
- Supreme Court Bar Association v. Union of India (1998)

RELATED:

136,141,144

ARTICLE: 226

TITLE:

Power of High Courts to Issue Certain Writs

TEXT:

Article 226 empowers every High Court to issue writs for the enforcement of Fundamental Rights and for any other legal purpose. The jurisdiction of High Courts under Article 226 is wider than that of the Supreme Court under Article 32.

KEY POINTS:

- Writ Jurisdiction
- High Courts
- Fundamental Rights
- Other Legal Rights

KEYWORDS:

High Court, Writ, Habeas Corpus, Mandamus, Certiorari, Prohibition, Quo Warranto

LANDMARK CASES:

- L. Chandra Kumar v. Union of India (1997)
- T.C. Basappa v. T. Nagappa (1954)

RELATED:

32,227

ARTICLE: 243

TITLE:

Definitions (Panchayats)

TEXT:

Article 243 provides definitions relating to Panchayats under Part IX of the Constitution. It defines terms such as District, Gram Sabha, Panchayat, Village, Intermediate Level, and Population.

KEY POINTS:

- Definitions for Panchayats
- Part IX
- Rural Local Government
- Foundation of Panchayati Raj

KEYWORDS:

Panchayat, Gram Sabha, Village, Local Government

LANDMARK CASES:

None

RELATED:

243A,243B,243C

ARTICLE: 324

TITLE:

Superintendence, Direction and Control of Elections

TEXT:

Article 324 vests the superintendence, direction, and control of elections to Parliament, State Legislatures, and the offices of the President and Vice-President in the Election Commission of India.

KEY POINTS:

- Election Commission
- Conduct of Elections
- Independent Constitutional Body
- Electoral Supervision

KEYWORDS:

Election Commission, Elections, Parliament, President, Democracy

LANDMARK CASES:

- Mohinder Singh Gill v. Chief Election Commissioner (1978)
- T.N. Seshan v. Union of India (1995)

RELATED:

325,326,327

ARTICLE: 352

TITLE:

Proclamation of National Emergency

TEXT:

Article 352 empowers the President to proclaim a National Emergency when the security of India or any part thereof is threatened by war, external aggression, or armed rebellion. Such proclamation requires Parliamentary approval.

KEY POINTS:

- National Emergency
- War
- External Aggression
- Armed Rebellion
- Parliamentary Approval

KEYWORDS:

Emergency, President, War, Armed Rebellion, Parliament

LANDMARK CASES:

- Minerva Mills v. Union of India (1980)
- S.R. Bommai v. Union of India (1994)

RELATED:

353,358,359

ARTICLE: 356

TITLE:

Provisions in Case of Failure of Constitutional Machinery in States (President's Rule)

TEXT:

Article 356 empowers the President to impose President's Rule in a State if the constitutional machinery of that State has failed. The President acts on the report of the Governor or otherwise. During President's Rule, the Union Government assumes control of the State's administration. The Proclamation must be approved by both Houses of Parliament.

KEY POINTS:

- President's Rule
- Failure of Constitutional Machinery
- Governor's Report
- Parliamentary Approval
- Union assumes State administration

KEYWORDS:

President's Rule, Governor, State Government, Emergency, Parliament

LANDMARK CASES:

- S.R. Bommai v. Union of India (1994)
- Rameshwar Prasad v. Union of India (2006)

RELATED:

355,357,365

SOURCE:

Constitution of India

ARTICLE: 368

TITLE:

Power of Parliament to Amend the Constitution

TEXT:

Article 368 grants Parliament the power to amend the Constitution and prescribes the procedure for constitutional amendments. Amendments may require a special majority, and certain provisions also require ratification by at least one-half of the State Legislatures. The amendment power is subject to the Basic Structure Doctrine.

KEY POINTS:

- Constitutional Amendment
- Special Majority
- State Ratification (where required)
- Basic Structure Doctrine
- Parliament's Constituent Power

KEYWORDS:

Constitution Amendment, Basic Structure, Parliament, Special Majority, Ratification

LANDMARK CASES:

- Kesavananda Bharati v. State of Kerala (1973)
- Golaknath v. State of Punjab (1967)
- Minerva Mills v. Union of India (1980)
- Waman Rao v. Union of India (1981)
- I.R. Coelho v. State of Tamil Nadu (2007)

RELATED:

13,32,245

SOURCE:

Constitution of India